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Before the Merits: A Deployment Front Door for High-Impact AI Litigation

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Abstract

AI litigation can stop before substantive doctrine can operate. An affected person may observe an adverse decision or interaction while the model, version, event record, and allocation of control remain divided among enterprises. Discovery ordinarily presupposes an identifiable target and cannot produce a deployment record that was never created.

This Article identifies that pre-merits attribution gap and proposes model sectoral legislation creating a deployment front door. For a designated high-impact deployment, an affected person invokes Stage One by identifying an adverse event affecting an interest protected by specified law, the covered deployment through which it occurred, and facts connecting bounded identity and event fields to that occurrence. Stage One never requires facts held exclusively in the deployment record. The visible operator must identify the system, supply an event receipt and custodian map, and preserve the record. An identified enterprise remains for Stage Two only when it held practical authority over a risk-relevant function, the Stage One record supports that the function formed part of the event path or governed a safeguard, and the requested information bears non-de-minimally on an element, defense, or remedy. Production is claim specific, proportionate, non-privileged, and protected. A merits firewall prevents any participation-based merits inference.

An ex ante record duty makes the rule usable by preserving version, approval, evaluation, escalation, intervention, and contractual-retrieval fields before suit. Garcia v. Character Technologies *demonstrates the missing-record problem inside a visible consumer service;* Mobley v. Workday *demonstrates identity, custody, and control divided across an employment stack. In both, the front door supplies the predicates while ordinary law decides who wins.*

Keywords: *artificial intelligence litigation; deployment front door; high-impact AI; early disclosure; deployment records; material control*

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I. Introduction

Fourteen-year-old Sewell Setzer III did not encounter a foundation model in a laboratory. He encountered a deployed relationship. In *Garcia v. Character Technologies, Inc.*, his mother's complaint alleged that Character.AI combined persistent personas, memory, access rules, warnings, engagement design, and safety controls in a consumer service available to minors. It alleged that Character Technologies' founders and Google made different contributions of personnel, technology, knowledge, and resources and that, after months of interaction with a character modeled on a fictional television figure, Sewell died by suicide. His mother brought wrongful-death, negligence, product-defect, failure-to-warn, deceptive-practice, and related claims. At the pleading stage, the district court treated the application as plausibly alleged to be a product and declined, on that record, to classify the generated output as protected speech. The action later settled without a finding of defect, causation, or liability.[1]

The case exposes a problem analytically independent of the ultimate merits result. The user sees the interface and the output. The facts ordinary law needs lie behind both: which model and application versions ran; who selected the relational objective, system instructions, memory, age gate, crisis response, and engagement metric; what evaluations, complaints, and incident signals arrived; who could update, restrict, roll back, or stop the deployment; and which enterprise retained each record. In a direct-to-consumer service, the operating company may be obvious while its deployment record remains inaccessible. In a divided system, the visible hospital, employer, agency, or application can depend on a model vendor, scoring service, infrastructure provider, and systems integrator that retain different controls. The claimant needs the configuration and control record to test a recognized claim, yet often must identify the record holder before obtaining that record. The merits standard exists; access to the facts that feed it does not.

This Article calls that sequence the *pre-merits attribution gap*. It comprises two related failures. The first is an *actor-identification failure*: an affected person cannot tell which enterprise selected or retained a control relevant to the asserted risk. The second is a *deployment-record fail-*

[1] See *Garcia v. Character Techs., Inc.,* 785 F. Supp. 3d 1157, 1165–69, 1174–84 (M.D. Fla. 2025); Order Dismissing Settled Action at 1, *Garcia v. Character Techs., Inc.,* No. 6:24-cv-01903-ACC-DCI (M.D. Fla. Jan. 7, 2026), ECF No. 244; Order Resolving Charging Lien at 1, *Garcia v. Character Techs., Inc.,* No. 6:24-cv-01903-ACC-DCI (M.D. Fla. June 11, 2026), ECF No. 273. The complaint's disputed account remains an allegation. This Article uses the published Rule 12 order for its classification and pleading analysis, not as a merits judgment.

ure: even when the operator's name is visible, the versions, configuration, evaluations, warnings, incidents, and intervention authority needed to test its conduct remain internal or were never recorded. The first failure is most acute in divided deployments. The second can determine a case in any deployment.

AI-liability scholarship disagrees over the substantive rule that should govern after the relevant actor and conduct are known. Anat Lior argues that legislators should adopt strict liability for AI-inflicted damages, while Zachary Henderson rejects categorical strict liability, arguing that negligence and products liability should remain the defaults, supplemented by insurance and narrow legislation. Catherine Sharkey identifies products liability as the most promising framework for AI, while Ketan Ramakrishnan offers a qualified defense of negligence as the principal doctrinal foundation for foundation-model liability.[2] Those positions address the merits-side question: which rule should govern an identified actor and deployment. This Article addresses a logically prior access question: how an affected person identifies the deployment, actor, and bounded record to which any such rule would apply. The merits firewall leaves that substantive disagreement intact. Negligence cannot evaluate conduct until the relevant conduct and actor are visible. Products liability cannot identify which company selected the model harness or retained the update right. Strict liability still requires identification of the covered activity or product and its connection to the injury. A rule placing a category of loss outside liability still requires enough information to determine whether the case falls within that category.

The question presented is therefore narrow: when an adverse event affects an interest protected by specified law through a designated high-impact AI deployment, but the affected person cannot identify the operative system, control holder, or deployment record, what facts should open a bounded identity-and-event stage—and which enterprise must answer first?

The Article's contribution is institutional sequencing. Section D maps neighboring proposals that begin with a substantive duty, disclosure mandate, regulator, or an access problem after an actor and arti-

[2] See Anat Lior, *AI Strict Liability Vis-À-Vis AI Monopolization*, 22 COLUM. SCI. & TECH. L. REV. 90, 91, 94–97 (2021); Zachary Henderson, *Rethinking Robot Liability*, 67 B.C. L. REV. 479, 483, 515–17 (2026); Catherine M. Sharkey, *A Products Liability Framework for AI*, 25 COLUM. SCI. & TECH. L. REV. 240, 240, 244–47 (2024); Ketan Ramakrishnan, *Tort Law at the Frontier of Artificial Intelligence*, 43 YALE J. ON REG. 960, 960–61 (2026). A systematic review of 559 federal opinions likewise reports that courts predominantly resolve AI disputes through preexisting legal doctrines and that litigated harms are shaped by existing causes of action. See Julie Yu et al., Visible to the Court: How AI Is (and Isn't) Litigated in U.S. Federal Court Opinions, at 1, 8–9 (2026), `https://arxiv.org/abs/2607.23888`.

fact are identifiable; existing procedure offers discovery after a viable action reaches an identifiable target. The front door brings together four functions: a sectoral designation that identifies the legal interest; an ex ante minimum record that keeps the deployment observable; a visible-operator gateway that supplies a reachable first recipient; and a material-control test that allocates access without allocating liability. The resulting rule is narrow enough to administer and complete enough to open the merits process.

Recent work has made the adjacent evidence problem explicit on both sides of litigation's filing line. Stewart proposes a pre-litigation right to test how modified inputs would change a known algorithmic decision. Cen, Ismael, and Zheng identify the "privatization of proof" and structure judicial access disputes once a requester can identify an artifact and a producing party that controls it.[3] This Article supplies a different institutional layer: the front end that identifies the deployment and its control holders, creates a minimum deployment record before an adverse event becomes a lawsuit, and gives the visible operator a bounded first-answer duty. Counterfactual testing, ordinary discovery, and audit can then operate on a known deployment, version, and record.

The primary adoption audience is a state legislature regulating a designated sector. Congress can use the same architecture for a national market, a federal cause of action, or an interstate deployment requiring uniformity. Courts administer the closed first-answer proceeding, protect the record, and decide whether Stage Two is justified. They do not create the ex ante record duty, nonwaiver rule, tolling period, or enforcement remedy from ordinary discovery doctrine. In short, this Article proposes model sectoral legislation that courts can administer through a closed pre-merits proceeding.

This Article proposes a *deployment front-door rule*. A legislature first designates a deployment category and specifies the protected interests, visible operator, minimum record, retention period, trigger, and remedy. An affected person invokes Stage One by identifying an adverse event affecting an interest protected by the specified law, the covered deployment through which it occurred, and facts reasonably connecting the requested identity and event fields to that occurrence. Stage One does not require facts held exclusively in the deployment record. The enterprise

[3] See Matthew Stewart, *Beyond Explanation: Evidentiary Rights for Algorithmic Accountability*, in PROCEEDINGS OF THE 2026 ACM CONFERENCE ON FAIRNESS, ACCOUNTABILITY, AND TRANSPARENCY 1066, 1067, 1076–79 (2026), `https://doi.org/10.1145/3805689.3806532`; Sarah H. Cen, Hannah Ismael & Lucia Zheng, *Barriers to Evidence in AI-Related Cases and the Privatization of Proof*, in PROCEEDINGS OF THE 2026 ACM CONFERENCE ON FAIRNESS, ACCOUNTABILITY, AND TRANSPARENCY 7793, 7794–95, 7801–05 (2026), `https://doi.org/10.1145/3805689.3812219`.

that made the deployment available or incorporated it into the affected process becomes the disclosure gateway. It must identify the deployed system, provide a bounded event receipt and custodian map, preserve the corresponding record, and activate the contractual retrieval path. An identified enterprise remains for Stage Two only when it held practical authority over a risk-relevant function, the Stage One record supports that the function formed part of the event path or governed a safeguard, and the requested information bears non-de-minimally on an element, defense, or remedy.

The rule changes access to facts, not the elements that decide the case. Its merits firewall creates no merits inference. Jurisdiction, immunity, privilege, proportionality, trade-secret protection, and substantive defenses remain operative. An enterprise that completes the first-answer obligation and establishes that it lacked material control over the risk terminates its special front-door role; absent an independently sufficient claim, it returns to ordinary nonparty status. Ultimate allocation remains governed by the cause of action, contribution and indemnity law, contract, and any independently available individual claim.

The front door has an ex ante component because litigation cannot recover a record that a deployment never created. For each designated category, the statute should impose a *deployment-record duty*: identify the system and version; assign risk and approval authority; document material evaluations, unresolved risk decisions, changes, complaints, incidents, and interventions; identify who can restrict, roll back, or stop operation; and retain the record for a specified period. A responsibility charter is the internal instrument that satisfies that record duty: infrastructure for the front door, not a second governance product.

The scope of the required record follows practical control. This Article uses a compressed *deployment-control cascade* to map objectives, resources, configuration, feedback, and stopping power across the model provider, application deployer, and operating institution. The cascade is a record-specification method. It identifies evidence relevant to authorization, notice, foreseeability, feasible precaution, causal sequence, preservation, and defense; governing law supplies every legal standard. Token-level unpredictability may complicate causal proof, but it does not make organizational choices about purpose, users, data, instructions, tools, monitoring, updates, and shutdown disappear.

Three design constraints define the rule's specifications. First, ordinary pleading and discovery often work once a claimant has a proper defendant and an identifiable record holder. The gap lies in establishing those predicates and in creating the record before litigation. Second, identification and production impose real costs even when the enterprise ultimately prevails. Coverage must therefore be sectorally designated; Stage One must be closed and event specific; Stage Two must be claim specific and proportionate; and privacy, security, privilege, and trade secrets must be protected. Third, some losses connected to AI have no legal remedy. The designation therefore names the protected interest and enforcement route, pure legal defenses can be resolved before Stage Two, and the statute supplies no general right to inspect a deployment simply because an affected person invokes AI.

The Article develops one contribution through five Parts. Part I identifies the pre-merits attribution gap, distinguishes adjacent evidence-access scholarship, and compresses the deployment-control cascade into a tool for specifying the missing record. Part II states the front-door rule, separates Stage One from Stage Two, defines material control, supplies model statutory text, and fixes the boundary between the statutory first answer and federal discovery. Part III applies the rule to two complementary settings: *Garcia*, where the visible operator makes production the central problem, and *Mobley*, where feature identity, data hosting, legal control, and validation divide across employers and a vendor. Part IV develops a minimized ex ante record infrastructure and compares existing safety, information-demand, and private-access regimes. Part V defines four boundaries: existing legal interests; constitutional and confidentiality protections; arbitration, cross-border enforcement, and preemption; and classification neutrality. The Conclusion returns to a single proposition: substantive law should decide AI cases, not an information asymmetry that prevents substantive law from starting.

II. The Pre-Merits Attribution Gap

A merits rule and a fact-access rule perform different work. Negligence may ask what precautions a reasonable deployer would have taken; products law may ask whether a design or warning was defective; antidiscrimination law may ask whether a screening process caused a prohibited disparity; administrative law may ask whether an agency supplied the explanation and review an entitlement requires. Each inquiry presupposes a defined act, actor, system, and time. Affected people commonly know the adverse result and the institution through which it arrived. They do not ordinarily know the version, configuration, allocation of control, or record needed to connect that result to the governing elements.

This Part identifies the resulting gap in four moves. Section A separates computational opacity from the system and organizational facts that adjudication can reach. Section B shows that ordinary federal procedure becomes effective after a proper target and record holder are identifiable but offers no uniform route to create those predicates. Section C distinguishes the front door from adjacent evidence-access scholarship. Section D compresses the deployment-control cascade into a specification for the facts the front door must identify and preserve.

A. The Output Does Not Reveal the Deployment

An AI dispute should begin with the deployed system rather than the generated token, score, or recommendation. The first attribution question is not who selected the final words or number. It is who constructed, supplied, authorized, observed, and could alter the deployment that produced the legally relevant effect. A model's internal computation may be difficult to explain while the surrounding control structure can leave usable evidence in contracts, release records, configuration systems, evaluation reports, incident queues, and access logs when law requires its creation and retention. That distinction makes responsibility evidence obtainable even when a compact explanation of the model's internal path is unavailable.

Three forms of opacity should remain separate. *Computational opacity* concerns the inability to give a human-scale account of how internal states produced a particular output. *System opacity* concerns interactions among the model, instructions, retrieval, memory, tools, filters, credentials, and conventional software. *Organizational opacity* concerns who approved the use, possessed risk information, controlled resources, or could restrict and stop operation. The first may follow from architecture. The latter two ordinarily follow from deployment design and recordkeeping.

Collapsing all three into a single "black box" allows the least tractable fact to obscure the facts ordinary doctrine can use. A court may be unable to reconstruct why a model ranked one token above another yet able to determine that a provider selected the model; a deployer supplied protected records and external tools; an interface suppressed uncertainty; a safety team documented a known failure mode; management rejected a delayed release; and an operator lacked time or authority to intervene. Intent and knowledge are often inferred from conduct and circumstances, product defect can sometimes be proved circumstantially, and direct organizational fault can lie in information systems, supervision, and resource allocation.[4] Model interpretability is not a condition precedent to responsibility at the deployment level.

Fragmentation makes those accessible facts difficult to attribute. Con-

[4] See, e.g., *United States v. U.S. Gypsum Co.,* 438 U.S. 422, 444–46 (1978); *Speller v. Sears, Roebuck & Co.,* 100 N.Y.2d 38, 41–43 (2003); Restatement (Third) of Agency §§ 7.03(1), 7.05 (Am. L. Inst. 2006).

sider an employer that licenses an applicant platform. The employer may select the job, criteria, candidate pool, weight assigned to a recommendation, and final disposition. A platform vendor may select the ranking model, training process, default features, update cadence, and bias testing. A systems integrator may configure data fields and workflow triggers. The applicant encounters an employer-branded portal and a rejection, not this allocation. In *Mobley v. Workday, Inc.*, for example, a complaint alleged that employer customers delegated candidate screening to Workday's AI-based tools; at the Rule 12 stage, the district court treated the alleged delegation of a traditional hiring function as sufficient to proceed on a statutory agency theory while leaving the allegations and ultimate liability unresolved.[5] The opinion shows that substantive law may address a divided stack once the vendor and its alleged function are visible. It does not supply every rejected applicant with the identity, version, configuration, or evaluation record needed to reach that point.

The same problem appears when the visible institution itself cannot inspect the vendor's method. A public employer may control whether and how a score affects termination while a vendor controls the scoring software and updates. A hospital may select the patient population and integrate a recommendation while a supplier controls model validation and releases. A benefits agency may own the legal decision and appeal path while contractors control the calculation tool and documentation. Control is distributed by function, not transferred wholesale to whichever entity's logo appears on the screen.

Current legal subjects remain stable across that distribution. Operational autonomy describes how a system produces effects; it does not identify an entity with assets, records, service capacity, or exposure to judgment. In the covered deployments considered here, existing organizations hold those incidents. A future legislature can construct a bounded juridical status and specify its representative, assets, attribution rules, service, and remedies. The front-door rule need not decide that future question. It follows the records and practical authority that existing law can presently reach.

B. Two Coordinates Define the Gap

Actor identity and record availability are independent coordinates. Treating them as one generic opacity problem obscures which legal intervention is needed. A claimant may know the relevant operator yet lack its deployment record. A claimant may possess a transaction or application

[5] See *Mobley v. Workday, Inc.*, 740 F. Supp. 3d 796, 806–08 (N.D. Cal. 2024). The decision granted in part and denied in part Workday's motion to dismiss the first amended complaint; it did not find discriminatory operation or resolve the merits.

record yet lack the upstream entity that supplied the operative function. A divided stack can produce both conditions at once. The front door sequences identity and record access so that each condition receives the smallest useful response.

The first configuration is an identifiable integrated operator with an adequate record. Ordinary procedure has a direct target, and the statute's principal work occurs ex ante: standardization, retention, and a quick first answer. The record may establish the active version, relevant policy, warnings, incident sequence, and stop authority without adding another merits defendant. If a filed claim proceeds, ordinary discovery can deepen the record in the familiar way.

The second configuration is an identifiable operator with a missing or fragmented internal record. The brand and legal entity are visible, but the claimant and sometimes the operator cannot reconstruct which versions, components, policies, and intervention roles governed the event. This is the production problem. It arises in an integrated consumer service when engineering, safety, product, trust-and-safety, and executive decisions live in separate systems. It also arises in a public institution that relies on a proprietary score it cannot independently verify. The ex ante duty matters most here because a post-event subpoena cannot create lineage or approval that the operator never recorded.

The third configuration is an identifiable event with an unknown operative entity. An applicant may have an employer, job, timestamp, and rejection while lacking the product feature that processed the application and the supplier responsible for it. A patient may know the hospital encounter while lacking the vendor and version embedded in a clinical workflow. This is the actor-identification problem. A closed first answer resolves provenance and custodian fields before broader access. The visible operator performs the gateway role because it chose to incorporate the system and can preserve the event even if another enterprise holds the relevant control lane.

The fourth configuration combines the two. The operative feature and supplier are hidden, and the minimum record was never created or is divided by contract. A supplier may host data while the customer owns it; an integrator may hold configuration history while the institution holds the decision; a model provider may know version lineage while the application company knows prompts, tools, and user exposure. Asking the claimant to choose a single controller before revealing this map converts organizational design into a litigation advantage. Treating every participant as a controller creates the opposite error. The front door identifies lanes first and terminates the special role of actors outside them.

This two-coordinate account yields a fixed sequence. The visible operator maps the deployment and event. Identified enterprises acknowledge their control and record lanes. All holders preserve the bounded slice. Stage One supplies version, provenance, control, and event fields. The material-control test removes irrelevant actors. Stage Two follows only the legal theory and unresolved lane. The sequence is the Article's central payoff: it opens access without deciding the liability questions that the record is meant to illuminate.

C. Ordinary Procedure Opens After Four Predicates

Federal procedure supplies substantial tools after four predicates are present: a filed action, a complaint capable of stating a legal claim, a known party or subpoena recipient, and an existing record within the reach of that target. The deployment front door supplies information needed to establish those predicates; it does not replace the procedure that follows them.

Pleading law illustrates the sequence. Rule 8 requires a short and plain statement showing entitlement to relief. *Twombly* and *Iqbal* require factual matter supporting a plausible claim, while Rule 11(b)(3) requires counsel to certify that factual contentions have evidentiary support or, if specifically identified, will likely have such support after a reasonable opportunity for investigation or discovery.[6] That accommodation matters: a plaintiff need not possess every internal email or validation report before filing. But Rule 11 creates neither a discovery entitlement nor a substitute for Rule 8. Neither rule names an unknown supplier, links a rejection to a product feature, identifies the version that ran, or requires the operator to have recorded that fact.

Discovery becomes powerful once an action and target exist. Rule 26(b)(1) permits discovery of relevant, proportional, nonprivileged matter. Rule 34 reaches existing documents and electronically stored information in a party's possession, custody, or control. Rule 45 reaches a known nonparty that can be named and served.[7] These mechanisms can test an agency theory, obtain validation evidence, and expose a divided contract. They do not identify the person to whom a subpoena should be directed or create a release approval, configuration history, or incident record that never existed.

Initial disclosure begins later and serves a narrower function. Rule 26(a)(1) generally requires the parties to identify witnesses and materials they may use to support their own claims or defenses, along with damages and insurance information. The disclosures ordinarily follow

[6] See Fed. R. Civ. P. 8(a)(2); Fed. R. Civ. P. 11(b)(3); *Bell Atl. Corp. v. Twombly,* 550 U.S. 544, 555–59, 570 (2007); *Ashcroft v. Iqbal,* 556 U.S. 662, 678–79, 686 (2009); *Rotella v. Wood,* 528 U.S. 549, 560–61 (2000).

[7] See Fed. R. Civ. P. 26; Fed. R. Civ. P. 34(a)(1), 45.

the Rule 26(f) conference.[8] They are not an adverse-record inventory. An operator that does not expect to use a rejected mitigation, contradictory test, or internal escalation in support of its position has no initial-disclosure obligation to list the item on that basis alone. The claimant can request it in discovery after the case begins; the front-door problem is how to identify the system, holder, and record category needed to frame that request.

Court-authorized early discovery provides a real bridge when the claimant already has a unique event identifier and knows the intermediary holding the identity record. In *Strike 3 Holdings, LLC v. Doe*, a rights holder tied an alleged online infringement to an IP address and sought an early subpoena to the known internet service provider capable of mapping that address to a subscriber. The D.C. Circuit held that Rule 26(d)(1) permits such a route and that Doe pleading can be appropriate when discovery is expected to reveal identity, subject to relevance, proportionality, and a realistic prospect of jurisdiction and success.[9] The case identifies the bridge's predicates as clearly as its power: a viable substantive claim, a unique incident identifier, and a known intermediary with an existing identity record. A fragmented deployment may lack the second or third predicate because the applicant sees only a branded portal, the operator does not retain the feature or run identifier, or the intermediary itself is hidden behind an integrator.

Rule 27 occupies another useful but bounded lane. It permits a person expecting to become a party to perpetuate testimony that risks being lost before an action can be filed. The petition must state the facts the petitioner expects to establish and the substance of the testimony to be preserved. Courts therefore distinguish perpetuation of known evidence from an investigation designed to learn whether a cause of action exists or whom to sue. In *Workman v. United States Postal Service*, the Tenth Circuit affirmed denial of a petition that sought testimony to determine whether a postal-facility fire supported a claim; lack of the evidence needed to frame a complaint was not the inability to bring an action contemplated by Rule 27.[10] A deposition cannot supply an unknown model version or a deployment record that no witness or enterprise created.

Divided control creates a further limit within ordinary discovery. Rule 34 control is a legal and organizational inquiry, not a synonym for tech-

[8] See Fed. R. Civ. P. 26(a)(1)(A)(i)–(iv), 26(a)(1)(C), 26(f).

[9] See *Strike 3 Holdings, LLC v. Doe,* 964 F.3d 1203, 1207, 1210–11 (D.C. Cir. 2020); see also *Columbia Ins. Co. v. Seescandy.com,* 185 F.R.D. 573, 577–80 (N.D. Cal. 1999).

[10] See Fed. R. Civ. P. 27; *Workman v. U.S. Postal Serv.,* 127 F.4th 237, 240–45 (10th Cir. 2025); *Ash v. Cort,* 512 F.2d 909, 912 (3d Cir. 1975).

nical hosting. The Ninth Circuit has declined to treat cooperative affiliation as control when the responding entity lacked a legal right to obtain an affiliate's files on demand. The Eleventh Circuit, in a different statutory proceeding and factual record, found control where affiliated entities regularly shared responsive information and the recipient had the practical ability to obtain it.[11] Those outcomes properly depend on contract and practice. They also show why a visible operator should retain the minimum record locally and obtain a contractual right to retrieve defined provenance and event fields from a supplier. Otherwise the vendor may physically host the data while the customer legally controls it, leaving each able to identify the other as the proper source.

Doe pleading and later amendment preserve some claims but do not create a national limitations safety net. Rule 15(c)(1)(C) requires timely notice to the added party and knowledge that, but for a mistake concerning identity, the action would have been brought against it. *Krupski* treats the prospective defendant's knowledge as central and recognizes that confusion over the roles of related, known entities can constitute a mistake. Courts can distinguish that situation from complete ignorance of an upstream actor. In *Winzer*, the Fifth Circuit held that substituting named officers for Doe defendants after limitations expired did not correct a Rule 15 mistake. Rule 15(c)(1)(A) can incorporate a more forgiving state relation-back rule, but that route depends on the law governing limitations and the state's own conditions.[12] A deployment statute can address the timing problem directly for claims within the enacting legislature's authority by tolling the applicable period while a compliant identity request is pending. Amendment and relation back in a later federal action remain governed by Rule 15.

State pre-suit proceedings confirm that a narrow identity stage is administrable while revealing the absence of a uniform route. Illinois Rule 224 authorizes an independent verified action limited to identifying a potentially responsible person or entity and ordinarily ends the proceeding after identification. Texas Rule 202 permits a verified petition to investigate a potential claim when the likely benefit outweighs burden or when perpetuation may prevent a failure or delay of justice. New York authorizes disclosure to aid in bringing an action. California's perpetuation statute takes the opposite approach: it expressly excludes discovery to

[11] Compare *In re Citric Acid Litig.,* 191 F.3d 1090, 1107–08 (9th Cir. 1999), with *Sergeeva v. Tripleton Int'l Ltd.,* 834 F.3d 1194, 1200–02 (11th Cir. 2016). *Sergeeva* arose under 28 U.S.C. § 1782; it illustrates a practical-control approach rather than deciding ordinary domestic merits discovery.

[12] See Fed. R. Civ. P. 15(c); *Krupski v. Costa Crociere S.p.A.,* 560 U.S. 538, 547–57 (2010); *Winzer v. Kaufman Cnty.,* 916 F.3d 464, 470–71 (5th Cir. 2019); *Butler v. Nat'l Cmty. Renaissance,* 766 F.3d 1191, 1200–02 (9th Cir. 2014).

determine whether a claim exists or to identify parties.[13] These systems provide design elements—verification, a closed purpose, burden review, a short proceeding, and cost allocation—rather than an existing federal solution.

The doctrinal sequence thus defines the proposal's consequential job. Ordinary discovery can test the merits once the litigation gateway is open. The deployment front door supplies the identity, minimum record, and control map needed to reach that gateway, and it makes those facts available before limitations, deletion, and divided custody determine the case's trajectory.

D. Existing Evidence Rights Need a Deployment Front End

Evidence-access scholarship now reaches both sides of litigation's filing line. Stewart's counterfactual-interrogation right would let a person affected by a known adverse algorithmic decision generate behavioral evidence before filing suit. The organization would supply a bounded interface using the decision-time model version, supported by logging and retention duties.[14] This is the nearest pre-litigation intervention. It begins, however, with an identified adverse decision, an organization capable of furnishing the testing portal, and a model linked to the decision. The front door constructs the identity and routing predicates that a divided deployment may conceal: whether a covered feature participated, which product and version ran, which entities supplied and operated it, and who can retrieve the event record. Once Stage One supplies that map, counterfactual interrogation can operate as one bounded form of Stage Two testing.

Cen, Ismael, and Zheng address the complementary access dispute. They identify seven recurring asymmetries—models, data, documentation, logs, expertise, compute, and infrastructure—and describe a Catch-22 in which the requester needs evidence to justify access while the producing party controls the evidence needed to make that showing. Their three-part test compares the benefits and risks of requested access, the minimum access needed to reproduce elements of the cause of action,

[13] See Ill. Sup. Ct. R. 224(a)(1)–(2), (b), (c); Tex. R. Civ. P. 202.1, 202.2(g), 202.4(a), 202.5; N.Y. C.P.L.R. § 3102(c) (2026); Cal. Civ. Proc. Code § 2035.010(b) (2026). A New York pre-action petition does not become a federal Rule 27 proceeding simply because a respondent removes it; *Teamsters Local 404* treated the state petition as outside the removable civil action described by 28 U.S.C. § 1441. See *Teamsters Loc. 404 Health Servs. & Ins. Plan v. King Pharms., Inc.,* 906 F.3d 260, 264–69 (2d Cir. 2018).

[14] See Stewart, supra note 3, at 1067, 1075–79.

and functionally equivalent alternatives.[15] That framework helps a court decide *how much* existing evidence an identified producing party should disclose. Stage One supplies the deployment, event, custodian, and control map; Stage Two can then use ordinary proportionality, protective orders, access alternatives, and the Cen framework on a claim-specific record.

Other work specifies adjacent components without supplying this claimant-facing route. García-Llorente and Olmeda propose a minimum technical-evidence package for sufficient intelligibility and auditability; procurement scholarship treats the contract file as a governance record; and organizational research shows that accountability records can change the conduct they observe.[16] Those contributions inform what a useful record may contain and how its costs should be controlled. The front door supplies the legal sequence that makes the record reachable by an affected person without treating the procurement contract or technical package as the source of the entitlement.

A 2026 systematic study of 559 federal opinions further finds that courts principally use preexisting doctrines to resolve disputes involving AI and that the set of litigated harms is shaped by which injuries existing law recognizes.[17] That evidence supports the Article's ordinary-law premise while sharpening its institutional contribution. The front door is the positive-law routing and record-formation layer: visible operator, bounded first answer, ex ante deployment record, material-control allocation, staged access, safe exit, and merits firewall. It lets testing and ordinary procedure operate on a known deployment without claiming a new general law of evidence or AI liability.

[15] See Cen, Ismael & Zheng, supra note 3, at 7794–95, 7801–05. Their analysis includes nonparty developers, preservation, procurement, and logging. The distinction here is institutional sequence: the front door imposes a visible-operator gateway, minimum deployment record, material-control routing rule, and safe exit before a court can apply an access test to a defined requester–producer relation.

[16] See Carlos García-Llorente & Ignacio Olmeda, *Making Algorithmic Transparency Enforceable: Sufficient Intelligibility, Technical Evidence, and Auditability Across the EU and the US*, 34 INT'L J.L. & INFO. TECH. eaag008 (2026) (abstract) (proposing a minimum technical-evidence package); Oswaldo Maxwell, The Procurement Record: How AI Contracts Decouple Evidence, Risk, Control, and Accountability (unpublished manuscript, July 10, 2026), `https://ssrn.com/abstract=7097518` (abstract) (treating the procurement file as a governance record); Shreya Chappidi et al., *Accountability Capture: How Record-Keeping to Support AI Transparency and Accountability (Re)shapes Algorithmic Oversight*, 8 PROCEEDINGS OF THE AAAI/ACM CONFERENCE ON AI, ETHICS, AND SOCIETY 554, 558–63 (2025) (identifying behavioral effects of accountability records).

[17] See Yu et al., supra note 2, at 1–2, 8–9. The study codes federal opinions in which AI appears in the parties' contentions; it does not estimate the universe of AI incidents or adjudicate the validity of any claim.

E. The Cascade Specifies the Missing Record

The deployment-control cascade is a disciplined way to define those predicates. Adapted from systems-safety analysis, it represents an AI deployment as linked controllers, control actions, process models, feedback channels, and intervention capacity. Systems-theoretic methods treat loss as a control problem that can arise from an absent constraint, unsafe action, inadequate feedback, or a controller's mistaken model of the operating environment.[18] The cascade uses that vocabulary only to specify contestable evidence. Governing law assigns duty, fault, causation, defenses, and remedy.

Four functional levels provide a reusable map for the integrated and divided deployments addressed here:

1. *authority and resources*: the actors who set objectives, risk tolerance, staffing, compute, data access, and release conditions;

2. *model and component supply*: the actors who develop or select models, document limits, conduct evaluations, issue updates, and supply interfaces or weights;

3. *deployment and harness operation*: the actors who select instructions, retrieval, memory, filters, routing, tools, credentials, eligible users, monitoring, and escalation; and

4. *the affected environment*: operators, users, data subjects, third-party systems, and institutional conditions that supply inputs and experience effects.

These are roles rather than four firms. One enterprise can occupy the first three levels in an integrated service. An API deployment may divide them among a model vendor, application developer, enterprise customer, and professional user. A public agency can set the legal objective and use of a score while a contractor supplies and updates the model. The map prevents a corporate label or contract caption from substituting for actual function.

[18] See NANCY G. LEVESON, ENGINEERING A SAFER WORLD: SYSTEMS THINKING APPLIED TO SAFETY 75–76, 87–90 (2012) (developing the systems-theoretic premise); Nancy G. Leveson & John P. Thomas, STPA Handbook, at 14–15 (MIT Partnership for Systems Approaches to Safety and Security, 2018), `https://psas.scripts.mit.edu/home/get_file.php?name=STPA_handbook.pdf` (specifying the STPA method); Shalaleh Rismani et al., *From Plane Crashes to Algorithmic Harm: Applicability of Safety Engineering Frameworks for Responsible ML*, in CHI '23 PROC. 2:1–2:18, 2:5–2:6, 2:14–2:18 (2023), `https://doi.org/10.1145/3544548.3581407` (applying safety-engineering frameworks to responsible machine learning).

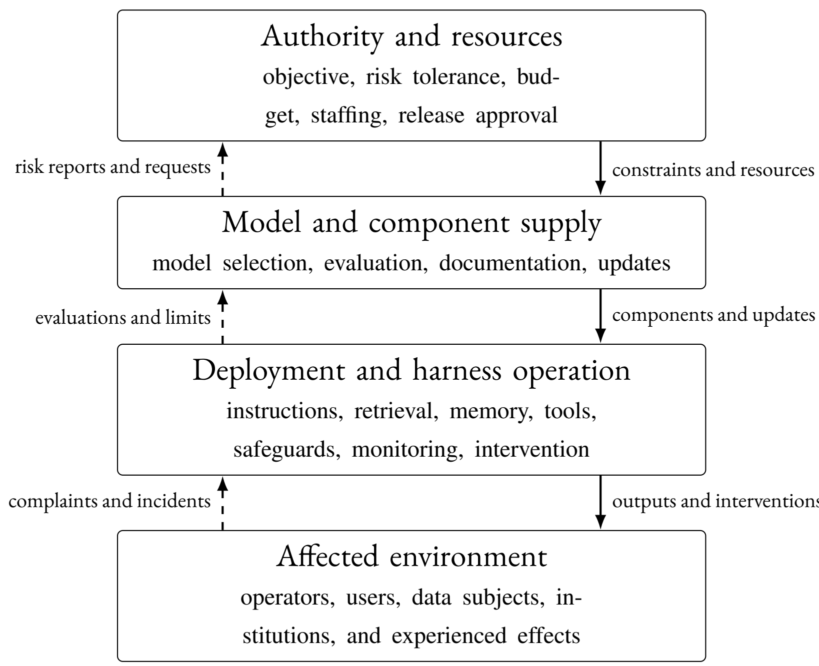

Figure 1: The deployment-control cascade as a record specification. Solid arrows carry authority, resources, components, and operational actions toward the affected environment. Dashed arrows carry the feedback required to update each controller's understanding. Restriction, rollback, credential revocation, and shutdown must be recorded where they can be exercised.

At each level, six questions define the discoverable record. What asserted risk was within scope? Which action could create, expose, detect, or reduce it? What did the controller understand about the system and environment? Which feedback could correct that understanding? What practical authority and resources existed at the relevant time? Who could restrict, roll back, suspend, or terminate operation? The answers identify specific materials rather than an undifferentiated demand for "the algorithm."

Table 1: From Deployment Control to a Litigation Record

Control lane	Core record	Potential use under governing law
Identity and configuration	Model and application versions; instructions; retrieval; data; tools; credentials; material changes.	Attribution; intended use; causal mechanism; authentication.
Authority and approval	Risk owner; release approvers; objectives; resources; conditions; unresolved risk decisions.	Authorization; direct organizational conduct; feasibility inquiry.
Evaluation and feedback	Test protocols and results; complaints; incidents; drift signals; overrides; escalation and response.	Knowledge; notice; continuing response; alternative explanations.
Intervention	Restriction, update, rollback, suspension, and termination rights; tested triggers and response times.	Practical control; ability to prevent or mitigate; causal sequence.
Retention and provenance	Record custodian; retention period; version lineage; third-party holders; legal holds and deletion events.	Identification; preservation; proportional discovery; defense and rebuttal.

The table is deliberately factual. Shutdown credentials supply evidence of practical authority; an alert supplies evidence of receipt; an internal limit supplies evidence about the organization's selected constraint. Governing law decides whether those facts establish duty, notice, or reasonable care. The same record supplies defense-favorable facts: a downstream modifier removed a safeguard, a user defeated a tested constraint, an incident signal never reached the asserted controller, or the proposed intervention could not have changed the result.

This mapping yields the front door's object. Actor-identification asks which enterprise occupied a risk-specific control lane. Deployment-record production asks for the bounded materials that establish or rebut that proposition and then permit ordinary doctrine to operate. Part II turns those two functions into a statutory trigger, a first-answer obligation, and a safe exit.

III. The Deployment Front-Door Rule

The attribution gap calls for a limited information rule rather than a new general law of AI liability. The rule must tell an affected person whom to approach, tell enterprises what record to maintain, and tell courts when and how that record becomes available. It must also provide a prompt exit for an enterprise whose connection to the brand or technical stack did not include practical control over the asserted risk.

This Part supplies that architecture. Section A ties coverage to sectoral legislative designation. Section B makes the visible operator the first-answer gateway and defines a threshold linked to an existing legal claim. Section C gives *material control* a cumulative, risk-specific test. Section D separates record creation, preservation, and staged production. Section E specifies confidentiality, remedies, and safe exit. Section F consolidates the proposal into model statutory text, and Section G shows why the ex ante record duty remains outside the Federal Rules while the statutory access channel ends wherever federal party discovery answers the same question.

A. Sectoral Designation Defines the Field

"High impact" should identify a deployment category, not attach permanently to a model. A general-purpose model can support casual drafting in one setting and become part of a benefits, hiring, clinical, or physical-control process in another. The deployment supplies the protected interest, affected population, operating institution, and legally relevant control. Coverage should follow those features.

The proposed statute therefore applies only when a legislature has designated a category and specified six matters: the protected interests; the visible operator; the minimum deployment record; the retention period and material-change trigger; the claimant's threshold; and the available enforcement remedy. A legislature can make the designation directly or authorize a sectoral agency to maintain a bounded list under statutory criteria. The legislature retains the choices that determine who must answer and which interests justify compulsory recordkeeping.

Five features identify the strongest candidates. First, the deployment affects an interest already protected by substantive law, such as employment opportunity, access to public benefits, health, credit, housing, education, physical safety, or the welfare of minors. Second, the system repeatedly mediates decisions or exposure rather than producing an isolated low-consequence convenience. Third, affected people predictably observe less about the operative system than the operator and suppliers know. Fourth, the identity, version, control, and event fields can be standardized at reasonable cost. Fifth, existing doctrine can adjudicate the dispute once those facts are available. These criteria select the settings in which a record gateway unlocks an established legal regime rather than inventing a new one.

Designation also fixes the public-law interface. If a covered operator is a government institution, the legislature should specify the enforcing tribunal, available relief, applicable exhaustion route, and the treatment of sovereign or official immunity. The front door need not imply a damages action against the government. It can supply an administrative record, declaratory remedy, reviewable denial, or other access path tailored to the underlying interest. Defining that route at designation keeps the information right aligned with the sector's remedial structure.

This design avoids an unstable universal definition. Employment screening, allocation of essential public benefits, clinical diagnosis or treatment, credit, housing, education admissions, physical safety, and relational services offered to minors may justify different records and retention periods. A companion service may require age-access, relational-behavior, crisis-intervention, and continuity records. An employment tool may require input-feature, validation, selection-rate, configuration, and version records. A clinical system may require intended-use, validation-population, uncertainty, escalation, override, and follow-up records. The shared front-door architecture permits sector-specific content.

California's enacted companion-chatbot provisions demonstrate the feasibility of this form. The legislature defined a covered relational service and its operator, required specified disclosures and self-harm protocols, imposed protections for known minors and reporting obligations, supplied a private remedy, and preserved cumulative law.[19] The statute did not need to declare every conversational model high impact. It regulated a deployment category and the enterprise that made it available.

A designation should also identify exclusions. Research or internal evaluation that does not produce a legally or practically consequential effect on an affected person ordinarily falls outside. So does general cloud hosting without risk-specific configuration or intervention authority. Small entities may receive simplified record forms or regulator assistance where the sector permits, but the information essential to identify a consequential decision should not disappear with enterprise size. A covered operator using open weights still controls a deployment; an upstream author who has no continuing authority may fall outside the post-release control lane.

B. The Visible Operator Answers First

The rule resolves the service problem by selecting the entity an affected person can ordinarily identify. The *visible operator* is the enterprise or public institution that made the covered deployment available to the affected person or incorporated it into the process that produced the adverse event. It may be a companion-service provider, employer, hospital, lender, benefits agency, school, or operator of a branded application. Its gateway role follows from visibility and provenance, not a presumption that it controlled every risk.

Stage One uses an occurrence threshold rather than a miniature merits pleading. A verified notice identifies: (1) an adverse event affecting an interest protected by the law specified in the sectoral designation; (2) the covered deployment or visible operator through which the event occurred; (3) facts reasonably connecting the requested identity and event fields to that occurrence; (4) the relevant time, transaction, account, decision, or interaction with as much specificity as reasonably available; (5) the closed fields sought; and (6) a good-faith intended use of the answer to evaluate, contest, appeal, or seek relief for the event. A declaration under penalty of perjury supplies the requester's personal knowledge and marks matters stated on information reasonably available; counsel certifies proper purpose and reasonable inquiry.

That threshold demands an event and a bounded connection, but never a fact held exclusively in the deployment record. An applicant need not know whether a named feature was enabled, whether it generated

[19] See Companion Chatbots, Cal. Bus. & Prof. Code §§ 22601(b), (e), 22602(a)–(c), 22603(a)–(d), 22604–22606 (2025). The enacted provisions do not contain the deployment front-door rule proposed here; they demonstrate that a legislature can designate a relational deployment, identify its operator, and attach enforceable protocol and reporting duties.

a score, whether the score reached the employer, which version ran, or which supplier retained the event log. Those are first-answer fields. "An AI harmed me" remains insufficient because it identifies neither a covered occurrence nor a closed record. But the operator cannot defeat Stage One by demanding proof that an undisclosed feature participated in the event.

The notice invokes a statutory access right that exists outside merits discovery. It may be served before a complaint. In a state proceeding or another lawful forum, the designation may also permit delivery with or after filing; Section 7 supplies the separate boundary for fields sought from another party after a federal action concerning the adverse event is pending. Delivery follows the electronic or registered-agent channel named in the designation; it invokes the operator's first-answer duty but is not service of process for a later action. The operator receives thirty days, subject to one short extension for a documented technical, privacy, or security need, to answer, object by field, or state that no covered deployment processed the identified event. Silence, a blanket proprietary designation, and referral to an unnamed vendor are not responses.

If the operator refuses or materially underanswers, the affected person may seek narrow enforcement against that known entity in a lawful forum. The statutory violation is complete upon coverage, a compliant request, delivery, and nonperformance; enforcement does not depend on pleading the merits fact that the first answer exists to reveal. The administering agency or a court with independent subject-matter and personal jurisdiction can order the defined answer, and a valid arbitration agreement may select the private enforcement forum. The requester bears the burden on coverage, delivery, and the occurrence threshold. The operator bears the burden on a field-specific objection based on facts within its control, including nonoperation, burden, privilege, privacy, security, or documented unavailability. Jurisdiction, immunity, preemption, and a pure legal bar remain available before access expands beyond the fixed first answer.

The gateway then supplies a *first answer* with two components. The *event receipt* identifies the application and model versions active for the event; any output, score, decision, notice, warning, transmission, use, or intervention recorded for that event; and whether a requested function did not run. The *custodian map* identifies entities that supplied, configured, integrated, or operated material components; the holder and legal controller of each listed record; and the roles with authority to update, restrict, roll back, suspend, or stop a relevant function. The operator preserves records within its control, identifies the retention schedule and known deletion, and activates each contractual retrieval and preservation path required before deployment.

This answer solves two practical problems. The affected person receives identity and provenance without reconstructing vendor architecture. Potential control holders receive a common event identifier and can preserve the corresponding slice. A visible operator cannot answer that procurement did not retain the version or that the supplier relationship is confidential; local provenance and a retrieval right are conditions of covered deployment. Notice to a supplier, however, creates neither statutory coverage, choice of law, personal jurisdiction, nor service of process. Direct statutory duties attach only where the enterprise and deployment fall within the Act's valid territorial and choice-of-law reach; the operator remains responsible for the local minimum answer and contractual retrieval architecture.

Stage Two begins only after that record exists. The affected person must identify a claim-specific control lane, show from Stage One that the function formed part of the event path or governed a safeguard, and show that additional nonprivileged information bears non-de-minimally on an element, defense, or remedy and is proportionate to the defined dispute. The visible operator remains free to show that its gateway role did not include the relevant lane. Visibility opens Stage One; the test in the next Section determines who remains for Stage Two.

C. Material Control Requires Risk, Authority, and Information Materiality

"Ability to affect the system" is too broad. A cloud provider, investor, data vendor, researcher, model author, and downstream institution may each have some causal connection to a deployment. The front door should reach an enterprise only when three requirements are satisfied at the relevant time.

First, *risk specificity*: the asserted control must connect to the risk alleged in the verified notice. General influence over corporate strategy, compute availability, or model research does not establish control over age access, hiring rank, clinical escalation, a particular tool permission, or another specified hazard.

Second, *practical authority*: the enterprise must have possessed an operational or legally enforceable ability to configure, constrain, evaluate, monitor, update, suspend, roll back, or terminate the relevant function. A theoretical technical capacity, an expired contract right, or influence that required another actor's voluntary cooperation is evidence but not practical authority by itself. Contractual audit, update, safety-override, and suspension rights matter because they may be usable controls; a contractual label declaring the parties independent does not decide the question.

Third, *information materiality*: the Stage One record must support that the function formed part of the event path or governed a safeguard, and the requested information must bear non-de-minimally on an element, defense, or remedy. An incidental contribution or a remote ability affecting every customer in the same undifferentiated way falls outside. The inquiry asks whether the requested information can materially inform adjudication. It does not require a showing that exercising the authority would have prevented the injury, changed the ultimate decision, or satisfied causation.

The requirements are cumulative. Nonexclusive factors include who selected the deployment's purpose and population; chose the model and version; configured instructions, memory, retrieval, data fields, tools, and credentials; set engagement, ranking, decision, or escalation thresholds; received evaluations, complaints, and incident signals; could issue an update or impose a restriction; retained contractual audit or safety-override rights; and could suspend, roll back, or terminate the function. The inquiry is temporal. Authority obtained after the event does not create earlier control, although later records may reveal what authority existed.

Several negative rules keep the test bounded. Investment, ordinary cloud capacity, publication of research, past employment, trademark association, and model provenance alone do not establish material control. Publishing open weights may end the original provider's ability to monitor or stop an independent deployment. A downstream modifier that removes safeguards, adds credentials, or selects a new high-impact purpose can occupy the relevant lane instead. Conversely, a provider that retains mandatory updates, remote suspension, risk monitoring, or binding deployment conditions may retain a lane despite contract language assigning "all responsibility" downstream.

Material control determines information obligations, not substantive liability. An enterprise can possess a control relevant to feasibility yet owe no duty to the affected person under governing law. It can receive an alert that does not constitute legally sufficient notice. The test identifies the entities and records needed to ask the merits questions accurately. The statute's *merits firewall* preserves that separation: front-door participation and record production create no inference on an element of the underlying claim.

i. Adjudicating Material Control

The test becomes useful doctrine when each requirement has an evidentiary question and an allocated burden. After the first answer, the affected person makes a prima facie showing by identifying a concrete lane connected to the asserted risk, showing that the Stage One record supports that the function formed part of the event path or governed a safeguard, and identifying requested information that bears non-de-minimally on a claim-specific element, defense, or remedy. The showing may point to an employer's enabled ranking feature, a provider's retained update authority, an application's self-harm threshold, or an integrator's workflow trigger. It concerns allocation and record relevance, not breach or causal sufficiency. An enterprise seeking termination then identifies Stage One material showing that the function did not run, no output was generated or transmitted, the asserted authority was unavailable at the relevant time, or the requested information bears no non-de-minimis relation to an element, defense, or remedy. The tribunal decides termination on that closed record or permits a bounded Stage Two inquiry when a genuine factual conflict remains.

The record duty supplies one limited burden consequence. If a covered enterprise's failure to create or retain a required Stage One field produces an ambiguity about its lane, the tribunal resolves that ambiguity against the record-duty holder only for access and termination. The consequence opens bounded production; it creates no inference of duty, breach, causation, discriminatory operation, or damages. That allocation prevents record noncompliance from becoming a safe exit while preserving the merits firewall.

Reserved contractual rights deserve particular care. A right to obtain validation on demand, require a safety update, audit use, or suspend a feature is practical authority when the right was legally available and operationally usable. The holder need not have exercised it in the claimant's event; otherwise an enterprise could erase its information obligation by leaving a reserved safeguard idle. A generic right to terminate an entire commercial agreement may be too remote when it provides no timely, risk-specific intervention. The contract supplies evidence, while administrative permissions, actual practice, response time, technical dependencies, and past interventions show whether the right could function.

Actual power can matter when a contract is silent or inaccurate. A vendor that routinely pushes mandatory updates, disables a feature across tenants, monitors risk signals, or supplies the only version map may possess practical authority even if the agreement calls the customer solely responsible. A customer that can enable, ignore, or combine a score may control the decision lane even when the vendor hosts the data. A systems integrator with one-time access during installation may fall outside after handoff unless it retained monitoring, credentials, or change authority. The inquiry reconstructs the operative deployment rather than enforcing labels selected for another purpose.

Table 2: Material Control as an Adjudicable Test

Requirement	Evidence that supports the lane	Evidence that supports termination of the lane
Risk specificity	Function map; risk ownership; feature requirements; evaluation scope; incident category; warnings; escalation assignment.	General corporate influence; unrelated research; infrastructure service without risk-specific configuration; records addressing a different feature or hazard.
Practical authority	Contract right; administrative permission; release or update role; audit access; monitoring feed; restriction, rollback, suspension, or termination mechanism; consistent exercise in practice.	Expired or legally unavailable right; access requiring another actor's uncommitted consent; technical ability prohibited and unused; independent modification beyond visibility or reach.
Information materiality	Stage One evidence that the function formed part of the event path or governed a safeguard; requested information bearing non-de-minimally on an element, defense, or remedy.	Feature inactive for the event; output never generated or transmitted; lane acquired after the event; requested information unrelated to the asserted path or claim-specific issue.

Information materiality imposes event-path discipline without creating a causation hearing. Stage One can answer many cases: the feature was disabled; no score was generated; the output never reached the decisionmaker; the provider had no post-release connection; or the supposed controller joined the stack after the event. A lane remains when the Stage One record supports that its function formed part of that path or governed a safeguard and the requested information bears non-deminimally on a claim-specific element, defense, or remedy. Where the event path and authority conflict, Stage Two can examine configuration history, tests, monitoring, or a representative protocol limited to that lane. No different-act, prevention, or causation showing is required.

The same test produces different allocations across architectures. In an integrated companion service, the visible operator may control access, relationship design, memory, engagement objectives, warnings, monitoring, and account restriction; an infrastructure provider offering generic compute exits. In an employment stack, the employer may control job criteria, feature activation, decision weight, review, and final disposition, while a vendor controls model design, defaults, validation, updates, and cross-customer monitoring. In an open-weights deployment, the original publisher may have no continuing control after release while a modifier and operating institution acquire the risk-specific tools, data, credentials, and stop authority. The rule follows each lane without requiring every participant to remain.

A material-control ruling terminates only the special front-door role. An entity never named on an underlying claim returns to ordinary nonparty status after completing any first-answer duty. A party already facing an independently sufficient cause of action remains subject to that claim even if it lacks the control lane alleged in the notice. This distinction gives safe exit its intended economy without using an information proceeding to decide a merits question it was not designed to reach.

D. Creation, Preservation, and Production Are Separate Duties

The front door depends on three legal functions that begin at different times.

i. Record Creation Before Operation

The *deployment-record duty* arises before a covered deployment affects the public. The visible operator has a nondelegable local duty to identify the system, version, purpose, population, material components, vendors, data sources, tools, credentials, intended limits, risk owners, release approval, event identifier, and intervention authority. During operation, it records material changes, evaluations, complaints, incidents, escalations, overrides, restrictions, rollbacks, and termination decisions. A covered control holder subject to the Act maintains the subset corresponding to its lane and provides current provenance and a response contact. If a supplier is outside the Act's direct reach, the operator still owes the local minimum record and must perform through its predeployment contract.

A divided deployment requires a retrieval architecture as well as a list of vendors. Before use, the visible operator must obtain contractual rights to retrieve the identity, version, configuration, event, and control-allocation fields assigned to an upstream holder on demand. The agreement identifies a responsive agent, stable deployment and event identifiers, preservation and response duties, lawful routes for producing customer-controlled data, successor obligations after acquisition, and the treatment of subcontractors. The operator need not warehouse a supplier's source code or unrelated customer data. It keeps a closed local record sufficient to identify what ran and a legally usable path to obtain the defined supplier fields.

That requirement builds a usable retrieval right into deployment design. Where Rule 34 control turns on a legal right to obtain documents on demand, a covered operator can create that right before deployment instead of litigating it after harm. Where privacy law or a customer agreement places legal control with the operating institution, the contract can authorize a coordinated response rather than allowing the host and customer to direct the requester to each other. Operator notice alone does not create personal jurisdiction over a foreign or out-of-state supplier.[20] A domestic operator preserves the minimum record locally and conditions covered use on a reachable agent and retrieval duty.

The designation supplies the detail. A statute need not require indefinite retention of every prompt or every user's data. It should define event categories, sampling where appropriate, privacy minimization, and a retention period calibrated to the protected interest and ordinary limitations period. High-impact decisions affecting employment or benefits may require the inputs, output, version, governing policy, notice, and review event for each affected person while permitting aggregation or deletion of unrelated interaction content. Relational deployments involving minors may require crisis detections and interventions while minimizing intimate content unrelated to the asserted event.

[20] See *Bristol-Myers Squibb Co. v. Superior Ct. of Cal.*, 582 U.S. 255, 264–68 (2017); *Ford Motor Co. v. Mont. Eighth Jud. Dist. Ct.*, 592 U.S. 351, 359–71 (2021). The model statute therefore distinguishes a control holder directly subject to the Act from a supplier reached through the operator's contract and local record.

ii. Preservation After a Defined Trigger

Retention and litigation preservation are related but distinct. The statute fixes a baseline period before any dispute. A verified front-door notice, regulator demand, filed claim, or other event making a dispute reasonably foreseeable suspends ordinary deletion for the risk-specific record. The operator must issue a hold to relevant custodians and notify identified control holders. The notice should not freeze every model and customer record. Its scope follows the event, versions, period, user or decision, control lanes, and asserted risk.

This statutory trigger creates a stable bridge to existing preservation law. It also protects defendants: a dated notice and documented hold define what had to be preserved and when. The record can show that a missing item was outside scope, deleted before any duty attached, or available from another source.

iii. Staged Production After the Threshold

Production proceeds in stages. Stage One is the first answer described above: identity and active versions; event-specific run, output, notice, and intervention fields; suppliers, custodians, and legal controllers; listed operational and stopping authority; and preservation, deletion, and retrieval status. Its purpose is to identify the deployment and test the control lanes.

Stage Two follows only when the affected person uses Stage One to make a prima facie showing of a claim-specific control lane, information materiality, and proportional need. It can include relevant evaluations and validation; complaints and incident trends; configuration history; release and change approvals; rejected or conditional mitigations; escalation and response; and records needed to test a proposed alternative or defense. Time, version, affected population, feature, and risk category bound the request.

Source code, model weights, unrestricted training data, security-sensitive controls, and unrelated users' content occupy a final tier. A court should order them only when the requesting party shows that a material issue cannot reasonably be tested through less intrusive evidence such as versioned documentation, validation results, representative testing, counterfactual interrogation, interrogatories, an expert protocol, or in camera review.[21] The distinction protects legitimate secrecy without converting a trade secret into a barrier to the legal process that governs its consequential use.

[21] See Stewart, supra note 3, at 1076–79. Counterfactual interrogation tests the behavior of a known decision-time version; Stage One supplies the identity and preservation predicates needed to direct that tool.

E. Protection, Remedies, and Safe Exit

Confidentiality is part of the rule's design. Production remains limited to nonprivileged matter. Courts may use redaction, pseudonymization, data minimization, attorneys'-eyes-only access, secure expert environments, in camera review, and protective orders for trade secrets, research, security, medical information, and personal data.[22] The operator must still identify that a protected record exists, its custodian, date, version, and asserted basis for withholding. A privilege log separates a lawful protection from an unreviewable claim that the record is proprietary.

The statute should specify graduated consequences.

1. *Late or incomplete identification*: an order enforcing the statutory first answer and reasonable expenses caused by noncompliance. For a claim created or governed by the same enactment, the limitations period is suspended from service of a compliant request until a fixed period after compliance or final denial. Other state and federal claims retain their own limitations and tolling law.

2. *Failure to create or retain the minimum record*: the administrative penalty, corrective record order, compliance monitoring, or statutory-access remedy specified by the sectoral enactment. The consequence addresses the independent deployment obligation; it does not become a prescribed inference on the underlying injury.

3. *Loss after a preservation trigger*: an order to identify the loss and available substitute sources, followed by measures under the governing forum's preservation law. For electronically stored information that should have been preserved in anticipation or conduct of federal litigation and cannot be restored or replaced, Rule 37(e) supplies the federal standard. The state statute should not prescribe a competing litigation sanction for the same loss.

4. *Intentional concealment or falsification*: specified civil penalties, enforcement expenses, and remedies for the independent access violation. Litigation misconduct remains subject to the tribunal's governing authority.

5. *The merits firewall*: compliance, noncompliance, and front-door participation create no inference on the merits questions enumerated in Section 8. Governing law determines whether a record omission has any separate relevance to an independently pleaded claim.

[22] See Fed. R. Civ. P. 26(c)(1)(G).

Safe exit is the reciprocal limit. After Stage One, an enterprise may move to terminate its front-door role by showing that it lacked material control over the asserted risk during the relevant period. The claimant may use the first-answer record to contest that showing. An entity not otherwise sued returns to ordinary nonparty status. A party remains only when an independently sufficient claim, a valid subpoena, or regulatory authority supplies a basis for continued participation. The gateway obligation therefore ends at the point where the control record shows that another lane or no AI-specific lane is relevant.

F. Model Statutory Text

The following text consolidates the rule as a default model. A sectoral enactment would identify the covered field, retention clock, administering authority, and ordinary civil-penalty ceiling while preserving the sequence and merits firewall.

> **Section 1. Designated Deployment and Covered Enterprises.** This Act applies only to an AI deployment category designated by the enacting legislature and identified by covered function, protected interests, visible operator, affected persons, minimum record, retention period, material-change threshold, administering authority, enforcement route, and civil-penalty ceiling. A *covered control holder* is an enterprise to which this State's law validly applies that operates, provides, or continuously supports the identified covered deployment, or that has contractually assumed the response duties defined here. Before designation, the legislature or authorized agency shall publish a federal-overlap determination identifying applicable federal actors, statutes, regulations, exclusive enforcement provisions, express or conflict-preemption issues, excluded actors and fields, the relation between remedies, and the claims to which state tolling may lawfully apply.
>
> **Section 2. Deployment Record and Retrieval Architecture.** Before making a covered deployment available or incorporating it into an affected process, the visible operator shall create and maintain a local record identifying the system and versions; purpose and affected population; material model, data, retrieval, tool, and credential components; deployment and event identifiers; suppliers and integrators; risk and release owners; evaluation and approval; material limitations and unresolved risk decisions; incident and escalation channels; and authority to update, restrict, roll back, suspend, or terminate. Each covered control holder shall maintain the corresponding portion and provide current provenance and a response contact. The operator shall obtain a contractual right to retrieve the defined supplier fields, require preser-

vation and response, and carry those duties through subcontracting, acquisition, and service termination. These operator duties are nondelegable. The designation supplies the retention period and material-change rule.

Section 3. Stage One Notice; No Condition Precedent. An affected person may deliver to the visible operator's designated agent a sworn declaration or declaration under penalty of perjury identifying: (a) an adverse event affecting an interest protected by the law named in the designation; (b) the covered deployment or visible operator through which the event occurred; (c) facts reasonably connecting the requested identity and event fields to that occurrence; (d) the event, transaction, account, application, decision, or period with as much specificity as reasonably available; (e) the closed fields sought; and (f) a good-faith intended use of the answer to evaluate, contest, appeal, or seek relief for the event. Stage One does not require a fact held exclusively in the deployment record. Counsel, if any, shall certify to the operator proper purpose and reasonable inquiry. Delivery invokes the first-answer duty but is not service of process for an enforcement action. Invocation or exhaustion of Stage One is not a condition precedent to commencing or maintaining any action other than an action to enforce the duties created by this Act. Failure to invoke Stage One, or an incomplete first answer, creates no pleading requirement, ground for dismissal, stay, or defense as to any other claim.

Section 4. First Answer and Preservation. Within thirty days after delivery, the operator shall provide an event receipt and custodian map. The receipt identifies the application and model versions active for the event; any requested output, score, decision, notice, warning, transmission, use, or intervention; and whether a named function did not run. The map identifies each entity that supplied, configured, integrated, or operated a material component; the custodian and legal controller of each field; and each entity with update, restriction, rollback, suspension, or termination authority. The operator shall preserve its risk-specific record, identify known deletion or unavailability, and activate its contractual retrieval and preservation rights. Each covered control holder independently subject to this Act shall preserve and acknowledge its assigned lane. For any other supplier, the operator shall satisfy the retrieval obligation through Section 2's contract and local record. Operator notice alone creates neither statutory coverage, choice of law, service, personal jurisdiction, nor consent. One extension of fifteen days may be obtained for a stated technical, privacy, or security need.

Section 5. Material Control. An enterprise remains for Stage

Two only upon a prima facie showing that, at the relevant time: (a) its function was specifically connected to the asserted risk; (b) it possessed practical authority through configuration, constraint, evaluation, monitoring, update, restriction, rollback, suspension, termination, or a legally enforceable equivalent; and (c) the Stage One record supports that the function formed part of the event path or governed a safeguard, and the requested information bears non-de-minimally on an element, defense, or remedy. This Section requires no showing that exercising the authority would have prevented the injury, changed the decision, or satisfied causation. Investment, general cloud service, publication, research, brand association, provenance, or theoretical technical capacity alone is insufficient.

Section 6. Objection, Burdens, and Enforcement. The operator may object by field and shall state facts supporting noncoverage, nonoperation, burden, privilege, privacy, security, or documented unavailability. A proprietary label or referral to an unnamed supplier is insufficient. A timely, specific objection stays disclosure of only the contested field pending prompt neutral review; every uncontested field remains due. An affected person may seek expedited enforcement in a court of competent jurisdiction or another lawful forum. The requester bears the burden on coverage, delivery, and the Stage One occurrence threshold. The operator bears the burden on a field-specific objection based on facts within its control. After the first answer, the requester identifies a prima facie control lane; an enterprise seeking termination identifies the Stage One record defeating risk specificity, practical authority, or information materiality. An ambiguity caused by that enterprise's violation of Section 2 is resolved against it only for access and termination and creates no merits inference.

Section 7. Stage Two, Federal-Court Boundary, and Protection. Further nonprivileged production may be obtained by agreement or ordered in a pending proceeding only when Stage One supports a claim-specific control lane, including that the function formed part of the event path or governed a safeguard; the requested information bears non-de-minimally on an element, defense, or remedy; and production is necessary and proportionate. Production shall be limited by time, version, affected population, feature, and asserted risk. Source code, weights, sensitive data, raw content, expressive deliberation, and security controls require written findings that less intrusive evidence cannot reasonably resolve a material issue. The owner of contested protected material and any materially affected third party shall receive notice and an opportunity for prompt neutral review before disclosure. The tribunal shall protect privilege, privacy, trade secrets, research, association, expression, and security through minimization, redaction, pseudonymization, limited access, secure expert review, in camera review, or another lawful safeguard.

In an action pending in a court of the United States, the Federal Rules of Civil Procedure govern all Stage Two production and protection. After an action concerning the adverse event is pending in such a court, and except for relief on a first-answer violation completed before that action was commenced, no party may invoke Stage One to obtain fields from another party in that action. As to fields first sought from another party after the action is pending, the first-answer duty is satisfied through, and limited by, the Federal Rules of Civil Procedure. This Act creates no entitlement to production from a party beyond the scope of Rule 26(b)(1), advances no discovery before Rule 26(d), and enlarges no production or subpoena authority under Rules 34 or 45. The duties to create, retain, and preserve the record under Sections 2 and 4 apply without regard to whether an action is pending.

Section 8. Merits Firewall and Termination. Compliance, noncompliance, notice, and participation create no presumption of duty, breach, defect, discriminatory operation, agency, causation, damages, or joint liability. Governing law supplies every element and defense. An enterprise that completes Section 4 and defeats a Section 5 requirement terminates its front-door role. An entity not otherwise subject to an independently sufficient claim resumes nonparty status. A valid subpoena, regulatory authority, or another source of law may require continued participation on its own terms.

Section 9. Remedies and Limitations. The lawful forum may issue an expedited compliance order and award reasonable actual expenses caused by an incomplete, late, or evasive answer. The administering authority may order creation or correction of the minimum record, compliance monitoring, and a civil penalty calibrated to duration, affected persons, record scope, and culpability up to the ceiling fixed in the sectoral designation. Knowing falsification, concealment, or repeated violation permits recovery of enforcement expenses and an enhanced penalty up to twice that ceiling. Bare nonperformance creates no private statutory damages; this Act creates no damages for the underlying adverse event and no merits presumption. Measures for lost electronically stored information in federal litigation remain governed by Federal Rule of Civil Procedure 37(e). Only a claim created or expressly governed by this Act is tolled from delivery of a compliant request until sixty days after compliance or final denial.

Section 10. Nonwaiver, Forum, Standing, and Federal Procedure. The duties to create, retain, and provide the minimum record are nonwaivable as to affected persons, arise from covered deployment, and exist whether a dispute is litigated, arbitrated, or never filed. Except as an element of a claim to enforce the first-answer duty itself, invocation or exhaustion of Stage One is not a condition precedent to commencing or maintaining any civil action or arbitration. Failure to invoke Stage One, or an incomplete first answer, creates no pleading requirement, ground for dismissal, stay, or defense as to any other claim.

A valid arbitration agreement may select the private enforcement forum under the Federal Arbitration Act; the first-answer clock continues independently, and completion of Stage One is not a condition precedent to commencing or continuing arbitration except as an element of a claim to enforce the first-answer duty itself. An agreement to which the administering authority is not a party does not restrict public enforcement brought in that authority's own name.

A claim to enforce a first-answer violation completed before a federal action was commenced seeks the compliance relief specified in Section 9. In federal court, the Federal Rules govern commencement, pleading, service, provisional relief, adjudication, and judgment. Section 7 governs any fields first sought from another party after a federal action concerning the adverse event is pending.

Nothing in this Act creates Article III standing, personal jurisdiction, or subject-matter jurisdiction; overrides immunity or privilege; binds a nonsignatory to arbitration; or alters federal rules governing pleading, service, joinder, discovery, amendment, protective orders, injunctions, and sanctions. Courts and arbitrators administer the duties created here; they do not derive them from ordinary discovery authority.

Section 11. Territorial Reach, Federal Supremacy, and Severability. An upstream enterprise has a direct duty only when it purposefully supplied, configured, operated, or continuously supported the identified deployment for covered use in this State, or another lawful basis for legislative authority exists, and application of this State's law satisfies territorial and choice-of-law rules. Coercive relief additionally requires valid service and an independent basis for personal jurisdiction. Appointment of the operator's response agent authorizes delivery under Section 3 only and creates no consent to general jurisdiction. This Act imposes no requirement to the extent federal law preempts it, requires no disclosure prohibited by federal privacy, security, communications,

> or confidentiality law, creates no claim solely to enforce a federal duty reserved to the United States, and does not regulate the United States absent congressional authorization and an applicable waiver. A tribunal shall sever a preempted actor, field, remedy, or application when the remaining designation can operate consistently with the legislature's stated purpose.

The model text makes the statutory architecture legible. The regulated acts are operating a covered deployment without the minimum record and refusing the resulting access right, not unsafe operation in the abstract. The trigger is tied to a legislatively specified legal interest, an adverse event, and closed deployment facts. Control is risk specific. Access is staged. Confidential information receives protection. A record holder can terminate its special role. The merits remain where ordinary law placed them.

G. The Front Door Ends Where Federal Discovery Begins

The front door's most durable contribution precedes any access dispute. No Federal Rule tells an enterprise what version, approval, evaluation, escalation, intervention, event, or retrieval record it must create while operating a covered deployment. Rule 34 permits requests for designated existing materials within a party's possession, custody, or control; it does not require the enterprise to create the record in the first place. Thus, even if a federal court declined to enforce a first-answer demand against another party after litigation began, the ex ante duty would still have performed the Article's indispensable work. The deployment would remain identifiable, its event and control record would exist, and ordinary federal discovery could reach that record subject to the Rules' own limits. *Erie* therefore governs the access channel in a bounded set of federal cases. It does not determine whether a covered deployment must remain observable.

Berk v. Choy makes the correct axis explicit: scope, not characterization. The Court reversed the dismissal of a diversity medical-negligence action that lacked the affidavit of merit required by Delaware law. An eight-Justice majority held that Rule 8 answered whether the action could be dismissed because the plaintiff had not supplied merits evidence at the outset; Justice Jackson concurred only in the judgment, locating the conflicts in Rules 3 and 12 instead. The opinions disagreed over the precise Federal Rule, but each treated definition of the "question in dispute" as decisive. Once a valid Federal Rule answers that question, *Berk* holds, contrary state law gives way even if it would count as substantive under *Erie*. At the Rules Enabling Act step, the inquiry is whether the Federal Rule "really regulates procedure"; the displaced state law's substantive nature or purpose "makes no difference." The front door therefore cannot rest on the proposition that Stage One is substantive, or on the *Shady Grove* concurrence's intertwinement formulation as a second-stage escape. It must stand because the Federal Rules do not answer the question Stage One asks.[23]

The distinction is structural. Delaware required a plaintiff to submit evidence to a court as part of commencing or maintaining a lawsuit. The front door requires no litigant to submit anything to a court, adds nothing to a complaint, changes no dismissal standard, and creates no prerequisite to another claim. It asks what a covered operator must record during operation and what fixed identity-and-event receipt it owes an affected person after a covered event. That duty is keyed to deployment, not litigation. It applies when the recipient later sues, arbitrates, pursues an administrative appeal, seeks an internal correction, or brings no proceeding. Sections 3 and 10 make the line operative: invocation is not a condition precedent, and noninvocation supplies no pleading defect, dismissal ground, stay, or defense in another action.

The discovery Rules answer a later and different set of questions. Rule 26(b)(1) defines the relevant and proportional discovery that parties may obtain concerning a party's claim or defense. Rule 26(d)(1) sets the time at which a party may seek that discovery. Rule 34(a) authorizes a party to request designated existing items from another party, within Rule 26(b)'s scope and in that party's possession, custody, or control. Rule 45 supplies process issuing from the court where an action is pending to reach an identified person. Rule 37(e) specifies federal-litigation measures for covered loss of electronically stored information. These Rules presuppose an action, a discovery relation, and an identifiable target or record. None tells an enterprise what record to create before a dispute or what transaction-linked receipt it owes a person who may never become a litigant.[24]

Rule 27 is the closest textual candidate because it operates before an action is filed. Its text, however, answers whether a federal district court may authorize depositions to perpetuate identified testimony for a contemplated federal action. In *Workman v. United States Postal Ser-*

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[23] See *Berk v. Choy*, 607 U.S. 187, 191–200 (2026) (reversing dismissal of the diversity action and holding that Federal Rule of Civil Procedure 8 displaced Del. Code tit. 18, § 6853); *id.* at 200–12 (Jackson, J., concurring in the judgment) (locating the conflicts in Rules 3 and 12 rather than Rule 8); *Hanna v. Plumer*, 380 U.S. 460, 469–74 (1965); *Shady Grove Orthopedic Associates, P.A. v. Allstate Insurance Co.*, 559 U.S. 393, 398–410 (2010); *Sibbach v. Wilson & Co.*, 312 U.S. 1, 14–16 (1941).

[24] See Fed. R. Civ. P. 26(b)(1), 26(d)(1), 27(a), 34(a), 37(e), 45(a)(2); *Workman v. United States Postal Service*, 127 F.4th 237, 240–45 (10th Cir. 2025) (affirming denial of a Rule 27 petition that sought to investigate whether a claim existed rather than to perpetuate known testimony).

vice, the Tenth Circuit affirmed denial of a Rule 27 petition because the petitioner sought an investigation to determine whether a claim existed rather than preservation of known testimony at risk of loss. That holding marks the limit of federal judicial power under Rule 27. It does not convert Rule 27 into an exclusive code governing every information duty that positive law places on regulated enterprises before suit. A broader reading would sweep transaction-linked access rights into a Rule directed to court-authorized depositions, even though those rights neither ask a federal court to investigate nor depend on its power to perpetuate testimony.[24]

Existing access statutes illustrate the distinction without resolving the *Erie* question presented here. The Fair Credit Reporting Act requires a consumer reporting agency, upon request and proper identification, to disclose a bounded consumer file, sources, and recipients. Florida requires a liability insurer to disclose specified coverage information to a claimant within thirty days of a written request. California requires an employer to maintain personnel records and furnish inspection or copies to a current or former employee, while expressly suspending that access route during a related lawsuit. Each regime has its own coverage and remedies; their institutional form is the relevant point. They impose record or disclosure obligations by virtue of a regulated relationship, not by enlarging a court's discovery power. The model Act adopts the same distinction and, like the California provision, expressly withdraws the parallel party-to-party route once a federal action is pending.[25]

American Bank v. City of Menasha supplies a useful but limited analogy. Interpreting a federal discovery stay, the Seventh Circuit held that a public-records request did not become discovery solely because the requester sought the material for litigation. It also warned that substance controls if a State disguises a discovery procedure as an inspection right. The front door satisfies that warning only if its operative structure matches its description: the fields are fixed before any dispute, the duty applies outside litigation, and claim-specific relevance and proportionality do not define Stage One. The Illinois, Texas, and New York pre-suit proceedings discussed in Part I serve a different function. Because they authorize a court to order pre-suit discovery, they demonstrate that a closed identity proceeding can be administered; they do not supply the federal-law form of this proposal.[25]

Berk itself supplies the affirmative model. In distinguishing *Cohen v. Beneficial Industrial Loan Corp.*, the Court explained that there was

[25] See Fair Credit Reporting Act, 15 U.S.C. § 1681g(a)(1)–(3) (2024); Fla. Stat. § 627.4137(1) (2026); Cal. Lab. Code § 1198.5(b)–(c), (n)–(o) (2026); *American Bank v. City of Menasha*, 627 F.3d 261, 265–67 (7th Cir. 2010); see also supra note 13 (collecting state pre-suit discovery proceedings).

no conflict because state law created a liability while Rule 23 governed disclosure to the court and notice to interested parties. The front door belongs on that side of the line when drafted as the model text provides. Coverage, a compliant notice, delivery, and nonperformance complete a state-law violation. An enforcement action seeks the prescribed event receipt and custodian map as relief on that claim; it does not ask the court to compel evidence for proving a different claim. Rule 8 governs the enforcement complaint, Rule 12 governs dismissal, Rule 65 and ordinary remedial rules govern interim relief, and the remaining Federal Rules govern adjudication. State law supplies the duty and remedy; federal law supplies the litigation machinery.[26]

Calling production "relief" is not sufficient by itself. Two objective features separate the front door from a free-standing bill of discovery. First, the designation fixes the Stage One universe before the event. Two affected persons presenting different liability theories receive the same identity, version, event, custodian, and control fields for the same kind of event, although either may request fewer fields. Second, the duty performs the same work when no merits suit follows. A field whose scope changes with a pleaded element, defense, relevance argument, or proportionality showing is not a Stage One field; it belongs to Stage Two or ordinary discovery. Fixed content and litigation-independent operation are therefore elements of the rule's boundary, not labels assigned during enforcement.

The model text then withdraws where a Federal Rule does answer the disputed question. Once an action concerning the adverse event is pending in federal court, a claimant may not serve Stage One on another party as an additional route around Rules 26(d), 26(b)(1), or 34. For fields first sought from that party after filing, the first-answer duty is satisfied through and limited by the Federal Rules. A completed refusal that preceded filing remains a claim for the compliance relief created by the Act; additional information sought to prove that claim or the underlying merits proceeds under the Rules. This boundary is written into Sections 7 and 10 rather than left to a general savings clause.

The operation is concrete. A rejected applicant who serves a compliant notice and receives no answer before filing may add the completed access violation to a later federal action if jurisdiction and Article III permit; the event receipt and custodian map are the requested relief. An applicant who files the employment action first may not use Stage One against the employer to obtain fields earlier or more broadly than federal discov-

[26] See *Berk*, 607 U.S. at 195–96 (distinguishing *Cohen*); *Cohen v. Beneficial Industrial Loan Corp.*, 337 U.S. 541, 555–56 (1949).

ery allows. In both sequences, the employer's Section 2 record-creation and retrieval duties have already made the deployment observable. The first sequence enforces an accrued statutory obligation. The second uses the Federal Rules against an existing, identifiable record.

The retrieval architecture likewise makes the state rule complementary to Rule 34. Section 2 requires the operator to obtain a contractual right to retrieve defined supplier fields before deployment. The Act does not declare that this right constitutes Rule 34 control. It changes the fact to which the federal test applies. In a circuit asking whether the responding party has a legal right to obtain documents on demand, a valid retrieval clause can supply that right. In a circuit examining practical ability and course of dealing, the clause, response mechanism, and actual practice supply relevant evidence. The federal court independently decides possession, custody, or control under the governing circuit's law. State contract law creates the retrieval entitlement; Rule 34 determines its procedural consequence.[27]

The forum boundary follows. The principal adopting institution is a state legislature, and the ordinary enforcement forum is the one the sectoral designation supplies under state law. In compliant cases no tribunal is involved: the operator delivers the receipt, and any later federal merits action proceeds under ordinary discovery. A federal court encounters the state access claim only through diversity or supplemental jurisdiction; Congress can adopt the same architecture for a federal cause of action, in which event *Erie* does not arise. The state statute creates neither subject-matter jurisdiction nor personal jurisdiction. Article III independently requires a concrete injury. A federal plaintiff should allege that denial impaired a specified use—identification, correction, contest, appeal, or pursuit of relief—or caused reasonable actual expense. State courts apply their own standing law.[28]

Record preservation and limitations follow the same allocation. State law may prescribe baseline creation and retention as conditions of covered operation and may extend the defined retention period after a qualifying notice. If electronically stored information is lost in anticipation or conduct of federal litigation, Rule 37(e) supplies the federal litigation

[27] Compare *In re Citric Acid Litigation*, 191 F.3d 1090, 1107–08 (9th Cir. 1999) (applying a legal-right-to-obtain test), with *Sergeeva v. Tripleton International Ltd.*, 834 F.3d 1194, 1200–02 (11th Cir. 2016) (affirming, in a proceeding under 28 U.S.C. § 1782, a control finding supported by the affiliated entities' ordinary course of dealing and access to responsive information).

[28] See 28 U.S.C. §§ 1331, 1332, 1367 (2024); *TransUnion LLC v. Ramirez*, 594 U.S. 413, 425–31, 440–42 (2021); *Spokeo, Inc. v. Robins*, 578 U.S. 330, 339–43 (2016); *Havens Realty Corp. v. Coleman*, 455 U.S. 363, 373–74 (1982); *Public Citizen v. United States Department of Justice*, 491 U.S. 440, 449–50 (1989); *Federal Election Commission v. Akins*, 524 U.S. 11, 21–25 (1998); *ASARCO Inc. v. Kadish*, 490 U.S. 605, 617–18 (1989).

measures; the state statute prescribes no competing adverse inference or case-management sanction. A State may toll a limitations period for a claim the Act creates or expressly governs while the operator answers. *Walker v. Armco Steel Corp.* remains the relevant scope precedent: Rule 3 did not answer when state limitations law was satisfied, so the state rule applied. Rule 15 continues to govern amendment and relation back in a later federal action.[29]

This allocation does not depend on how lower courts extend *Berk* to anti-SLAPP statutes or other state gatekeeping devices. Nor does the four-step sequence depend on a federal court accepting a parallel access channel against another party after litigation begins. The rule is narrower and more durable: a State may require a covered enterprise to make a high-impact deployment observable and to furnish a fixed receipt outside federal party discovery; once federal party discovery governs the same request, the Federal Rules supply the exclusive channel. The front door creates the record and the first object. It ends where federal discovery begins.

IV. The Rule in Operation

The front door performs two functions that no single fact pattern displays equally well. In an integrated deployment, the operator is visible and the missing object is the deployment record. In a divided deployment, identity, possession, legal control, and technical control can occupy different entities. This Part applies the rule once to each architecture.

Garcia is the production application. It shows how an alleged covered event can define a narrow, two-stage record while preserving product classification, speech, defect, causation, and defense for ordinary adjudication. *Mobley v. Workday, Inc.* is the divided-stack application. The cited orders provide an unusually direct view of information split among applicants, employer customers, and an AI vendor. The *Mobley* application is analytically independent of any later decertification, dismissal, merits judgment, appellate disposition, or settlement. Each order is used only for the procedural posture and record-allocation problem it documents.[30]

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[29] See *Walker v. Armco Steel Corp.*, 446 U.S. 740, 750–52 (1980); *Berk*, 607 U.S. at 205 (Jackson, J., concurring in the judgment); Fed. R. Civ. P. 15(c), 37(e).

[30] This Article's *Mobley* docket cutoff is July 2, 2026. At that point, the case had proceeded through provisional certification of an ADEA collective, discovery remained ongoing, and Workday's decertification motion was due later that month. See Order Denying Certification of an Interlocutory Appeal at 2, *Mobley v. Workday, Inc.,* No. 3:23-cv-00770-RFL (N.D. Cal. July 2, 2026), ECF No. 376.

A. An Integrated Deployment: *Garcia*

Garcia begins where the rule is easiest to serve. Character Technologies operated the visible consumer application. The complaint identified the company, its founders, and Google entities and described months of interaction through a known service. The difficult questions concerned the record behind the interface: which versions and policies governed, how features were allocated among the application and its components, what relational and self-harm risks were evaluated, what warnings and interventions appeared, and which actors could change access or operation.

The published decision supplies a careful procedural anchor. Taking well-pleaded allegations as true for Rule 12 purposes, the district court treated Character.AI as plausibly alleged to be a product and allowed central product and negligence theories to proceed. It declined on that record to treat the generated sequence as protected speech where defendants had not identified the relevant expressive choice or speaker. The order made no finding of defect, causation, or liability, and the later settlement supplied no merits determination.[31]

i. Trigger and First Answer

The alleged event and pleaded facts illustrate a notice that, if verified, would satisfy the threshold. The complaint identified legally cognizable injuries, including wrongful death, and linked them to sustained interaction with a designated relational deployment. It challenged concrete features: access by a minor, anthropomorphic presentation, continuity and memory, relational engagement, warnings, and asserted omissions in safety intervention. The requested records would bear on recognized negligence, products, warning, and consumer theories rather than a freestanding claim to inspect a chatbot.

Character Technologies would receive the front-door notice as visible operator. Stage One would identify the application and model versions active for Sewell's account; whether the requested covered functions ran; warnings, detections, blocks, escalations, and interventions recorded for the event; the entities that supplied or configured relevant components and the custodians and legal controllers of the listed records; and the roles with update, restriction, rollback, suspension, or termination authority.

The complaint's allegations concerning the founders and Google demonstrate why identification should remain functional. It alleged personal direction by the founders and technical, financial, and organizational

[31] See *Garcia*, 785 F. Supp. 3d at 1165–69, 1174–84; Garcia Dismissal, ECF No. 244, at 1; Garcia Charging-Lien Order, ECF No. 273, at 1.

contributions by Google.[32] Position, investment, former employment, or infrastructure supply alone would not establish material control. The first answer would identify whether any enterprise retained a risk-specific right over the model, application configuration, evaluation, release condition, update, or stopping decision. That record tests the control lane without presuming it from corporate association.

ii. Relational Features Define the Risk-Specific Record

The production request can be narrower because relational research identifies provider-governed variables. Studies of companion discontinuity and shutdown connect continuity and relationship framing to experiences of loss; analyses of user reports identify emotional dependence and recurring roles in harmful interactions.[33] A preregistered four-week study manipulated relationship-seeking behavior and repeated exposure. In its controlled population, relationship-seeking behavior increased separation distress by 6.04 percentage points, and the combined relationship-seeking and emotional-conversation condition produced one additional dependency-risk profile for every eleven participants compared with the most functional baseline.[34]

The legal contribution lies in the variables rather than a universal effect estimate. Relationship seeking, continuity, memory, dose, age, crisis signal, and provider intervention are features an operator can evaluate and govern. They specify the record relevant to intended use, notice, alternative design, warning, monitoring, and causal sequence.

The table also disciplines marketing evidence. Calling a service a companion or therapist does not make the model a legal person and does not establish defect. It can identify the use the enterprise cultivated, the exposure it expected, and the evaluations responsive to that design. A generic "not human" notice enters the same record with its timing, presentation,

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[32] See First Amended Complaint ¶¶ 24–25, 50–72, *Garcia v. Character Techs., Inc.*, No. 6:24-cv-01903-ACC-EJK (M.D. Fla. Nov. 9, 2024), ECF No. 11; *Garcia*, 785 F. Supp. 3d at 1165–66, 1183–84.

[33] See Julian De Freitas et al., Lessons from an App Update at Replika AI: Identity Discontinuity in Human–AI Relationships, at 11–25 (Harv. Bus. Sch. Working Paper No. 25-018, 2025), `https://www.hbs.edu/ris/Publication%20Files/25-018_d256c104-e5ba-4911-b72c-874c5492166e.pdf`; Jaime Banks, *Deletion, Departure, Death: Experiences of AI Companion Loss*, 41 J. SOC. & PERS. RELATIONSHIPS 3547, 3547–49, 3555–69 (2024); Linnea Laestadius et al., *Too Human and Not Human Enough: A Grounded Theory Analysis of Mental Health Harms from Emotional Dependence on the Social Chatbot Replika*, 26 NEW MEDIA & SOC'Y 5923, 5926–38 (2024); Renwen Zhang et al., *The Dark Side of AI Companionship: A Taxonomy of Harmful Algorithmic Behaviors in Human–AI Relationships*, in CHI '25 PROC. 1, 5–19, 22–23 (2025).

[34] See Hannah Rose Kirk et al., Neural Steering Vectors Reveal Dose and Exposure-Dependent Impacts of Human–AI Relationships, at 2–3, 5–8, 10–11, arXiv:2512.01991v2 (Feb. 18, 2026). The 2026 preprint supports causal propositions about its experimental exposures. It does not estimate commercial-population incidence, historical foreseeability, clinical injury, or tort causation in *Garcia*.

Table 3: Relational Features as Control-Record Factors

Deployment feature	Risk-specific record
Persistent persona, memory, proactive messages, affection, or exclusivity	Intended relational use; exposure and continuity testing; memory policy; age-specific evaluation; monitored dependence signals.
Claims of companionship, therapy, expertise, autonomy, or capacity to act	Target audience; product requirements; substantiation; warning design; expected reliance; escalation responsibility.
Engagement objectives tied to relational behavior	Metric ownership; optimization target; risk constraint; release decision; evaluation of lower-exposure alternatives.
Self-harm or crisis classification	Detection version; threshold; validated population; false-positive and false-negative analysis; response policy; incident-specific trigger and intervention.
Access by minors	Age rule and enforcement; minor-specific evaluation; parental or guardian features where applicable; restriction and termination authority.
Discontinuity, account intervention, or service shutdown	Continuity notice; export or transition function; crisis safeguard; rollback and account-restriction decision.

audience, and relation to the service's features.

iii. Stage Two and the Merits

After Stage One established the versions, roles, and incident sequence, Stage Two could reach relevant evaluation protocols and results; age-access testing; relational and self-harm policies and configuration history; material complaints and incident patterns before the event; release and change approvals; escalations and response; and the availability of account restriction, crisis interruption, rollback, or another proposed control. Time, version, population, feature, and asserted risk would define the scope.

That production would not include every model weight, every user's conversation, or unrestricted disclosure of a minor's data. Unrelated content can be excluded or minimized. Privilege, privacy protection, redaction, secure expert review, and trade-secret orders remain available. Source code or weights would require a showing that versioned documentation, test results, event logs, and representative testing could not resolve a material issue.

The record would preserve defense-favorable facts. The pleadings and motion papers disputed user selection of characters, role play, user-edited messages, platform rules, content blocking, and an in-chat notice that character statements were fictional.[35] A configuration and event record could identify which features came from a third-party creator, which messages the user edited, which controls fired, which warnings appeared, and whether a proposed safeguard would have changed the sequence.

Ordinary law would then decide the case. Product classification would select applicable design and warning rules. Contemporaneous evaluations and complaints would inform foreseeability and notice. Authority and resources would identify the actors and capabilities relevant to feasibility. The event sequence would test factual and legal causation. Research published after the 2023–2024 interaction could identify questions without establishing what a defendant historically knew. Later safety measures could identify a technically describable control while evidence law and the substantive standard determine admissibility and earlier feasibility.[36]

Garcia thus demonstrates the production function cleanly. The operator's name was visible. The front door would have supplied a bounded deployment record capable of supporting either party while leaving every contested merits question open.

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[35] See *Garcia*, 785 F. Supp. 3d at 1167–69.

[36] See Fed. R. Evid. 407; *Garcia*, 785 F. Supp. 3d at 1169.

B. A Divided Deployment: The Vendor Hosts the Data; the Employer Controls It

Mobley presents the complementary architecture. Applicants encounter employer portals while a platform vendor supplies processing and recommendation features. Employers can own or legally control applicant data and decide how a feature affects hiring; the vendor can host the data and control products, versions, defaults, and some evaluation. The cited orders expose four recurring record-allocation problems that the front door must solve without predicting discrimination: feature identity, divided legal control, privilege, and safe exit.

i. Feature Identity and the Event Path

The first problem is not whether "AI" was generally available. It is which function processed a particular application and what reached the employer. At the pleading stage, the district court treated allegations that employer customers delegated traditional hiring functions to Workday as sufficient to proceed on a statutory agency theory. The same order required a different theory to connect a particular employer's conduct, Workday's knowledge, and the assistance it allegedly supplied.[37] Nominal identity was visible. The operative chain among employer, feature, output, use, and knowledge was not.

Later notice-stage proceedings illustrate the fields. Candidate Skills Match, when enabled by a customer, parsed a job description and applicant materials, extracted skills, and assigned a categorical match. Workday described customers as able to enable, disable, use, or ignore features. The court reserved what outputs meant and how customers used them for later adjudication while permitting targeted discovery to identify potential collective members.[38]

For a designated employment-screening deployment, the employer receiving the application is the visible operator. Stage One asks the applicant for the position, application date, adverse disposition, covered portal, and the best available event key—a requisition number, application ID, tenant URL, or timestamp. It does not require the applicant to name the vendor feature or allege that a hidden score actually participated. The first answer resolves that question.

The employer's event receipt identifies products active for the application; versions and enabled features; fields, criteria, and preferences

[37] See *Mobley*, 740 F. Supp. 3d at 806–08, 815–16. The order granted in part and denied in part a motion to dismiss; it made no finding of discriminatory operation or ultimate agency.

[38] See Order Granting Preliminary Collective Certification at 2, 4, 10–13, 18–20, *Mobley v. Workday, Inc.*, No. 3:23-cv-00770-RFL (N.D. Cal. May 16, 2025), ECF No. 128. Preliminary certification authorized notice and preserved Workday's right to seek decertification; it was not a merits or final class ruling.

the employer supplied; any score, sort, rank, screen, threshold, or recommendation received; the downstream action; and whether no automated function processed the event. The custodian map identifies the supplier, account roles, record locations, legal controllers, and contractual retrieval, update, and suspension rights. A linked supplier answer resolves the same identifier within its lane: tenant and requisition, product and version, whether a function ran, whether it generated and transmitted an output, which settings came from the customer, and which entities held the listed records and authority roles.

Together, those answers separate five propositions: a feature was available; the customer enabled it; it processed the event; it generated or transmitted an output; and the customer used that output. None follows from the preceding proposition alone. Stage One establishes whether the function formed part of the event path or governed a safeguard; information materiality asks whether the requested information bears non-de-minimally on an element, defense, or remedy. Neither requires a showing that the output caused an unlawful decision.

ii. Physical Hosting Versus Legal Control

The second problem is custody. A 2026 discovery order described customer applicant data as stored on Workday servers while the agreement placed ownership of customer content with the customer and allowed the customer to seek an injunction against disclosure. Applicants had subpoenaed thirty-five customers, and some customers pointed back to Workday as the efficient source. On that record, the court held that physical storage did not establish Workday's legal right to obtain and produce the customer data on demand under Rule 34.[39]

The front door does not reverse that holding. It changes deployment design before the dispute. The employer keeps the local manifest, position definition, customer settings, application, downstream review, disposition, notice, and event identifier. The supplier keeps version lineage, product documentation, defaults, run and transmission logs, and the operational evaluation record assigned to its lane. The predeployment agreement gives the employer a right to retrieve defined supplier fields and authorizes a coordinated hold for customer-controlled content. Both receive the same deployment and event identifiers, preventing a platform label and customer label from preserving incompatible slices.

That architecture distinguishes technical hosting from statutory responsibility. A covered supplier subject to the Act answers its assigned

[39] See Discovery Order at 1–3, 8–10, *Mobley v. Workday, Inc.*, No. 3:23-cv-00770-RFL (N.D. Cal. May 29, 2026), ECF No. 340. The holding concerns the agreement and record before the court; it does not classify every hosted Workday record.

lane. Another supplier responds through the employer's retrieval right. The applicant no longer has to choose between the host and legal controller before seeing the contract and custodian map; Stage One identifies both, and ordinary Rule 34 or Rule 45 analysis governs any later production beyond the statutory minimum.

iii. Privilege Versus the Operational Minimum Record

The third problem is the line between legal advice and operation. The same discovery order held particular Candidate Skills Match bias-testing materials privileged because counsel selected the data and used the tests to provide legal advice. It separately ordered production of Workday's EEO-1 and federal-contractor compliance materials based on their relevance to knowledge of potential demographic disparities.[40]

The front door preserves that distinction. Attorney communications and qualifying counsel-directed analyses remain protected. The operational minimum—feature identity, version, intended use, validation owner, deployed threshold, event output, complaints, monitoring, and change history—exists because the covered system operated. A privilege log can identify protected analysis while underlying nonprivileged data and ordinary-course records follow existing law.[41] The statute therefore protects privilege without allowing an enterprise to satisfy its operating duty only inside a legal-advice file.

iv. Safe Exit and Coordinated Stage Two

The fourth problem is ending the special proceeding for the wrong lane. A 2025 order concerning HiredScore directed Workday to identify customers that enabled specified features and supplied a concrete exclusion rule: a customer could leave the preliminary collective if Workday could determine that it received no score or rank or did not use the feature to screen candidates.[42] The order managed collective notice rather than applying this Article's statute, but it illustrates a similar operational sequence: identify deployment and output, remove customers with no relevant run or use, and reserve disputed effect.

Stage One generalizes that logic at the event level. The employer controls job criteria, feature activation, decision weight, review, notice, and final disposition. The vendor may control design, defaults, validation, updates, and cross-customer monitoring. Practical authority fol-

[40] See Mobley Discovery Order, ECF No. 340, at 3, 7–8, 10–11. The order protected identified attorney-directed testing; it did not classify every evaluation or underlying business fact as privileged.

[41] See *Upjohn Co. v. United States,* 449 U.S. 383, 395–96 (1981); Fed. R. Civ. P. 26(b)(3), 26(b)(5)(A).

[42] See Order Concerning HiredScore Features and Customer Identification at 1–2, *Mobley v. Workday, Inc.,* No. 3:23-cv-00770-RFL (N.D. Cal. July 29, 2025), ECF No. 158.

lows permissions, contracts, and release mechanisms. The Stage One record shows whether the function formed part of the event path or governed a safeguard; the requested Stage Two information must bear non-de-minimally on an element, defense, or remedy. A customer for which no relevant feature ran, no output was produced, or no output reached the decision path exits the AI-specific lane. Generic hosting, a product acquired after the event, or a component that only transmitted a fixed customer rule can support the same result. None determines whether another employment practice violated law.

Only then does claim-specific Stage Two begin. A disparate-impact theory may justify aggregate recommendation data, validation, feature documentation, and nonprivileged testing bounded by product, period, employer settings, job family, and population. A disparate-treatment theory focuses on decision inputs, human review, departures, and communications. An accommodation theory focuses on fields, access, exception handling, and review. The governing statute and procedural rules select the record.

Where hosting and legal control remain divided, a coordinated protocol replaces serial referrals. The employer authorizes the defined customer fields; the platform runs the query against the correct tenant and version; both verify the schema; direct identifiers are pseudonymized; any lawful protected-characteristic linkage remains segregated; and experts use a secure environment. The protocol identifies which enterprise supplies each field and who attests to completeness. It neither transfers all customer data nor treats physical hosting as universal Rule 34 control.

An applicant thus begins with an employer and event identifier. The first answer reveals feature, version, path, and holder. Coupled preservation prevents ownership and hosting from creating a loop. Privilege protects legal advice while leaving a minimum operational record. Safe exit removes actors with no run or relevant control. Ordinary antidiscrimination law, Rule 34, Rule 45, and collective or class standards then govern a focused dispute.

v. A Stable Public-Employment Analogue

Houston Federation of Teachers v. Houston Independent School District confirms the structural point on a completed summary-judgment record. HISD licensed SAS's proprietary Educational Value-Added Assessment System for teacher evaluation. SAS calculated the scores through undisclosed source code and methodology. HISD acknowledged that it did not verify or audit those calculations and that teachers could not reproduce them from the information available. In discovery and public-record responses, the district had also taken the position that requested materials were outside its custody, control, or possession.[43]

The court denied HISD summary judgment on procedural due process while granting judgment on the other constitutional theories. The record could support a conclusion that teachers had no meaningful way to verify a potentially mistaken score used in a protected employment decision. The court did not impose liability on SAS, decide a tort claim, or order public release of source code. Its ruling preserved the due-process claim for further proceedings and granted HISD judgment on the remaining claims.[44]

The court framed secrecy and public duty without treating either as absolute. A remedy could restrict the government's use of an unverifiable procedure while preserving the vendor's trade secret.[45] A front-door statute adds the prospective complement: define the version, input, validation, audit, and challenge record before the public employer adopts the tool, and allocate protected access when an employment interest is at stake. The public institution remains answerable for the process it chose even when a supplier retains the method.

Together, *Mobley* and *Houston Federation* show why the divided application matters. The actor-identification problem and the deployment-record problem can arise in the same stack, yet ownership, hosting, legal control, privilege, and trade secrecy require different answers. A first-answer obligation makes those distinctions explicit early. It leaves the tribunal free to grant production, deny it, protect it, or end the claim under the law that governs the particular record.

V. The Record Infrastructure

The front door can disclose only what the deployment has made observable. Ordinary discovery reaches existing matter within a party's possession, custody, or control.[46] It cannot recreate an unrecorded version, an undocumented release decision, a complaint that reached no assigned owner, or stop authority that no one possessed. The deployment-record duty therefore begins as operating infrastructure and later becomes litigation infrastructure.

This Part turns that premise into an administrable record. Sections A through C define the control sheet, interface, and separate identity, feedback, and event clocks. Section D uses FAA, FTC, and FCRA com-

[43] See *Hous. Fed'n of Tchrs., Loc. 2415 v. Hous. Indep. Sch. Dist.,* 251 F. Supp. 3d 1168, 1172–73, 1177–78 (S.D. Tex. 2017).
[44] See Id. at 1179–80, 1185.
[45] See Id. at 1180–83.
[46] See Fed. R. Civ. P. 34(a)(1).

parators to test feasibility. Section E answers the risk that recordkeeping can become surveillance or organizational theater. Section F protects the reporting needed to keep the record accurate, and Section G explains why the same infrastructure supplies defenses as well as claims.

A. The Charter Is the Deployment Record's Control Sheet

For a designated high-impact deployment, the operator should adopt a written responsibility charter before release. The name can suggest a broad ethics code; its legal function here is narrower. It is the control sheet for a named deployment, version family, operating context, and risk category. It links technical identifiers to organizational authority and establishes where continuing records will be kept.

Table 4: Minimum Deployment-Record Infrastructure

Component	Required allocation	Front-door function
Identity and scope	Application and model versions; purpose; affected population; data; retrieval; tools; credentials; vendors; limits; material-change threshold.	Defines the deployment and distinguishes versions, component changes, and independent modification.
Risk and release owners	Responsible executive and operational owner for each designated risk; approvers; authority and resources; conditions and review date.	Identifies who receives information and who can commission mitigation or withhold release.
Evaluation and decision record	Protocols, populations, thresholds, results, exceptions, rejected or conditional mitigations, and unresolved risk decisions.	Records the basis for authorization and supplies both knowledge and reasonableness evidence.

Component	Required allocation	Front-door function
Feedback and escalation	Complaint and incident categories; monitoring; protected escalation; recipient; response deadline; decision and corrective action.	Preserves notice, separates report from response, and makes continuing control observable.
Intervention	Actors authorized to restrict, revoke credentials, update, pause, roll back, or terminate; triggers, response times, and tested procedures.	Establishes practical authority and whether a proposed intervention was available at the relevant time.
Provenance and retention	Version lineage; material configuration changes; event identifiers; record custodians; third-party locations; retention and hold procedures.	Enables identification, authentication, preservation, proportional production, and safe exit.
External-rights savings clause	Statement that internal allocation and contract labels do not waive affected-person rights or determine ultimate liability.	Prevents the record from operating as a private exculpatory agreement.

The record should identify roles and offices as well as names. Personnel change; statutory responsibility should survive turnover. A deployment ID links the approved control sheet to the live configuration, and a versioned amendment records material change. The operator can then answer a front-door notice by retrieving a defined record rather than assembling an organizational history after the event.

The material-change threshold is especially important for learning and composite systems. A model update can alter capability while leaving the application version unchanged. A new retrieval source, memory setting, tool credential, ranking threshold, user population, or downstream purpose can change risk without changing model weights. The charter should identify which changes require renewed evaluation or approval and which enter a lower-burden change log. A provider and operator can use different internal systems so long as the deployment record links them by version, time, and control lane.

Possession of a completed form supplies only the beginning of proof. Front-door production asks whether the people assigned to receive a signal had practical authority and resources, whether reports reached them, whether intervention procedures worked, and whether material changes triggered review. Unless positive law gives compliance another effect, a complete record supplies evidence of conduct rather than a conclusive defense.[47]

B. The Record Has a Standard Interface

The minimum record should operate as an information plane across the deployment rather than as a mandate to centralize every underlying artifact. The visible operator keeps a closed manifest: deployment ID; covered purpose and population; application and model versions; material components and suppliers; record custodians; risk and release owners; relevant contract rights; and the event schema used for consequential actions. Each control holder keeps the deeper materials assigned to its lane. Stable identifiers join the manifest to those materials when a notice or regulator demand arrives.

Three identifiers do most of the work. A *deployment identifier* distinguishes the covered use from the same model used elsewhere. A *component-version identifier* ties model, application, retrieval, tool, policy, and configuration changes to a time interval. An *event identifier* connects an affected person or consequential decision to the versions and records that governed it. The event identifier can be pseudonymous and separately linked to personal data. The system therefore retrieves the relevant slice without exposing unrelated users or requiring a later investigator to infer lineage from timestamps alone.

The interface should use a sectoral data dictionary. "Model version" can otherwise mean a marketing name, weight snapshot, API alias, application release, policy bundle, or customer configuration. The designation should define the fields needed to reproduce the legally relevant identity: supplier identifier; immutable or otherwise auditable version reference; activation window; configuration owner; material change; downstream integration; output type; and custodian. An enterprise may keep its own engineering format, but the first answer translates that format

[47] See Restatement (Third) of Torts: Liability for Physical and Emotional Harm § 16(a) (Am. L. Inst. 2010); Restatement (Third) of Torts: Products Liability § 4(b) (Am. L. Inst. 1998). Jurisdictions may assign statutory compliance a different effect.

into the defined fields and identifies the source system from which each field came.

Integrity requires lineage rather than a self-authenticating compliance certificate. A manifest should record who created and approved it, the date, later amendments, and the source records supporting the entry. Automated logs can carry hashes, signatures, or append-only controls where appropriate; lower-technology sectors can use ordinary version control and attestation. The legal function is the same: preserve a contestable trail from the live event to the record, not establish conclusively that every listed control operated as designed.

Supplier contracts implement the interface. A covered operator should receive current component and version identifiers, material-change notice, an event-resolution method, a responsive agent, and a right to retrieve the minimum supplier fields on demand. The supplier should receive the operator's deployment identifier, designated purpose, configured population, material customer settings, and preservation contact. Acquisition, subcontracting, model substitution, and service termination should carry successor and export duties for the retained period. These terms keep the record reachable when corporate and technical boundaries change after deployment. Recent work on the AI procurement record reaches a closely related diagnosis: contracts can separate evidence, operational control, economic risk, and public accountability.[48]

The architecture controls cost by keeping routine manifest fields separate from retrieval after a defined event. Release and asset-management systems can supply version and supplier identity. Transaction, decision, and incident systems can supply event fields. Deeper evaluation, complaint, and source materials stay with their custodians unless a risk-specific request justifies access. Standardization moves expense toward one-time design and retrieval by identifier, away from repeated forensic reconstruction across every dispute.

Quality assurance can also be bounded. The operator periodically reconciles the live deployment against the manifest, tests whether an event identifier resolves to the governing versions, confirms that supplier contacts and retrieval rights remain usable, and records exceptions. A regulator can audit samples without obtaining every event. The check asks whether the front door will open when needed: can the operator identify what ran, locate the holder, preserve the slice, and exercise the retrieval path?

[48] See Maxwell, supra note 16 (abstract) (treating the procurement file as a governance record). The front door adds a nonwaivable affected-person-facing answer and event-specific enforcement path.

C. Identity, Feedback, and Event Records Have Different Clocks

A usable infrastructure contains three linked records.

The *identity record* changes when the deployment changes. It contains the versioned architecture, purpose, population, component suppliers, material configuration, data and tool interfaces, owners, and intervention rights. Its retention period should cover the ordinary period in which a claim involving that deployment can arise, with sector-specific extensions for minors, latent physical injury, or continuing public entitlements.

The *feedback record* accumulates during operation. It contains defined complaints, evaluations, incident classifications, monitoring signals, escalations, decisions, and corrective actions. The designation should specify which events require individual retention, which may be aggregated, and which content should be minimized. A service can record that a crisis detector triggered, which policy and version governed, and what intervention followed without preserving every unrelated intimate conversation indefinitely.

The *event record* freezes a bounded slice when a consequential action or identified incident occurs. In employment it may contain the application, input fields, model and configuration versions, score or recommendation, threshold, downstream human action, notice, and review. In benefits it may contain the assessment data, calculation version, output, governing policy, explanation, appeal, and correction. In a companion deployment it may contain the account and age status, relevant interaction window, governing relational and crisis policies, detections, interventions, warnings, and account restrictions. The event record anchors causal sequence while leaving unrelated people and periods outside production.

These clocks improve privacy and accuracy simultaneously. A blanket command to retain all interactions invites excess. A deployment ID, event schema, and material-change log preserve the facts needed to identify the relevant window. Sectoral lawmakers can then choose periods and minimization rules that fit the interest rather than defaulting to permanent surveillance.

Retention should follow the legal and factual life of the interest. Employment and credit records can track the limitations and administrative-charge periods governing the designated decision, with a defined post-notice extension. A public-benefits event may need to persist through reconsideration, appeal, and the period for judicial review. A clinical deployment may require longer identity and validation lineage where injury can appear later, while still minimizing raw patient content under health-information rules. A relational service involving a minor can preserve crisis and intervention events for a longer protected period without retaining every ordinary conversation. The designation should state the clock, trigger, and lawful deletion rule rather than asking operators to guess from a generic command to keep "AI data."

Different clocks also prevent a change from overwriting history. A current model card cannot establish what governed an earlier event; a current contract cannot prove who controlled retrieval before an acquisition; a revised policy cannot show which warning appeared to an earlier user. The identity record freezes each material interval. The event record points to that interval. The feedback record then shows what the organization learned and changed between intervals. This structure turns evolution from an obstacle into an auditable sequence.

Responsibility for legal holds should also appear in the record. The verified notice described in Part II identifies the event, period, user or decision, and risk. The operator's hold reaches the matching identity, feedback, and event materials and gives identified control holders a common reference. If a record no longer exists, the response identifies the deletion rule, date, custodian, and possible substitute. That information permits a court to distinguish ordinary expiration, negligent noncompliance, and intentional concealment.

D. Existing Regimes Demonstrate Administrability

The proposal borrows implementation forms, not liability conclusions. Three regimes perform distinct comparator roles: organizational record creation, regulator-defined information demands, and a private path from visible decisionmaker to upstream file holder.

i. FAA Safety Management Systems

FAA Part 5 requires covered aviation organizations, on the applicable schedule, to develop and maintain an organization-wide safety management system. The rules assign an accountable executive, require management authority to accept safety risk, specify hazard identification and risk control, require assurance and corrective action, and preserve records. For specified organizations, the system includes confidential employee reporting without fear of reprisal.[49]

Part 5 demonstrates four institutional facts. A safety system can attach to an organization rather than a single component. Named executive and operational authority can coexist. Continuing assessment and correction can be recorded as operating requirements. Retention can be specified without waiting for a lawsuit. AI deployments involve different

[49] See 14 C.F.R. §§ 5.1–5.17, 5.21–5.25, 5.53–5.57, 5.71–5.75, 5.95–5.97 (2025).

technologies and protected interests, so the aviation standard does not define reasonable AI care. It demonstrates an administrable precedent for making authority, feedback, intervention, and records a mandatory operating system rather than an aspirational policy.

Aviation reporting supplies a related design lesson. Candid incident and near-miss information has prevention value, while a system that treats every report as a confession encourages silence. The Aviation Safety Reporting Program uses third-party reporting and a qualified, nonpunitive enforcement policy rather than blanket immunity.[50] The front-door record can follow the same incentive logic: protect good-faith reporting and evidence preservation while retaining consequences for falsification, concealment, retaliation, and unauthorized bypass.

ii. The FTC Companion-Chatbot Orders

The Federal Trade Commission's 2025 section 6(b) study shows that AI-deployment records can be specified with considerably more precision than "produce the algorithm." The Commission ordered named firms to identify organizational roles, predeployment standards and thresholds, deployment approvers, considered and rejected mitigations, post-deployment monitoring, complaints, employee concerns, escalation, and response.[51]

Those specifications map directly onto the front-door functions. Organizational roles identify the control lane. Thresholds and approvers define release authority. Rejected mitigations record a decision without deciding whether it was unreasonable. Monitoring, complaints, employee concerns, escalation, and response create a time-stamped feedback path. A sectoral statute can standardize the same categories prospectively and permit a court to request only the subset connected to a verified risk.

NIST's AI Risk Management Framework can supply terminology for lifecycle roles, executive responsibility, third-party components, testing, feedback, monitoring, and decommissioning.[52] Its voluntary framework remains a vocabulary source. FAA rules and a sector-specific statute supply legal obligation; the FTC orders demonstrate that the responsive information can be operationally defined.

[50] See Federal Aviation Administration, Aviation Safety Reporting Program, Advisory Circular 00-46F, at ¶¶ 2, 6.2, 8.1–8.3, 12.3 (Apr. 2, 2021), `https://www.faa.gov/documentLibrary/media/Advisory_Circular/AC_00-46F.pdf`.

[51] See Federal Trade Commission, Model Order to File a Special Report Regarding AI Companion Chatbots, File No. P254500, at Definitions & Instructions; specs. 3, 11–17 (Sept. 10, 2025), `https://www.ftc.gov/system/files/ftc_gov/pdf/AICompanionChatbot6(b)Order.pdf`. The order gathers information; it is not a finding that a recipient violated law.

[52] See National Institute of Standards and Technology, Artificial Intelligence Risk Management Framework (AI RMF 1.0), NIST AI 100-1, at GOVERN 1.7, 2.1, 2.3; MAP 3.5; MEASURE 2.5; MANAGE 4.1 (Jan. 2023), `https://nvlpubs.nist.gov/nistpubs/ai/NIST.AI.100-1.pdf`.

iii. The FCRA's Private-Actor First-Answer Sequence

The Fair Credit Reporting Act supplies the closest domestic analogue for a private-actor gateway. In employment, a user generally must give the consumer a copy of the report and a rights summary before taking an adverse action based on that report.[53] After a covered adverse action, the visible decision user must notify the consumer, identify the consumer reporting agency that supplied the report, state that the agency did not make the decision, and give notice of the right to obtain a free report and dispute its accuracy.[54] The agency, in turn, discloses the bounded consumer file, its sources, and recent recipients; a dispute triggers reinvestigation and a defined route to the furnisher.[55]

That sequence separates merits from access and the visible actor from the upstream information holder. Notice of adverse action does not establish that the report was inaccurate or that either entity violated a merits duty. It routes the affected person to a bounded file and correction process. The analogy concerns duties assigned to private actors, not a unitary private remedy: section 1681m(h)(8) excludes private civil actions for failures under section 1681m and assigns that section to public enforcement, while other FCRA provisions carry their own enforcement allocations.[56] FCRA also applies only within its consumer-report architecture, generally presupposes an existing file, and supplies neither an AI deployment map nor a material-control test. Its structural lesson remains powerful: federal law can require the visible decision user to identify an upstream record holder while expressly declining to treat that holder as the decisionmaker. The front door adds the ex ante event and control record for legislatively designated deployments.

Together, the comparators answer feasibility at the right level. FAA Part 5 shows prospective organizational records; the FTC orders show that deployment roles and events can be specified; FCRA shows a private-actor routing sequence across a divided decision stack. For firms already capable of version control, release management, access logging, vendor management, incident response, and legal retention, the proposal connects those systems for designated deployments. Sectoral designations can provide simplified forms and regulator assistance where appropriate. Neither route requires a universal explanation of every internal model state.

[53] See Fair Credit Reporting Act, 15 U.S.C. § 1681b(b)(3)(A) (2024).
[54] See Fair Credit Reporting Act, 15 U.S.C. § 1681m(a)(1), (3)–(4) (2024).
[55] See Fair Credit Reporting Act, 15 U.S.C. §§ 1681g(a)(1)–(3), 1681h(a), 1681j(b), 1681i(a)(1)–(2), (a)(5), 1681s-2(b)(1) (2024).
[56] See Fair Credit Reporting Act, 15 U.S.C. § 1681m(h)(8) (2024); *Perry v. First Nat'l Bank,* 459 F.3d 816, 822–23 (7th Cir. 2006).

E. Recordkeeping Risks Require Minimization by Design

Recordkeeping creates a distinct governance risk because recording can reshape the organization being observed. In a 2025 survey of one hundred practitioners, respondents described employee resistance, privacy tension, and uses extending beyond the accountability purpose; forty-seven percent reported records used to monitor or improve staff performance.[57] A mandate framed as "retain everything" could expand employee and user surveillance, suppress candid internal discussion, preserve sensitive data without purpose, and reward litigation defensibility over safety value.

The front door answers that risk in its data structure. The operator keeps a minimum manifest rather than raw content by default. Identity, feedback, and event records use different clocks. The event schema records that a threshold fired, which policy governed, and what response followed; it does not require every conversation, keystroke, or unrelated user's data. Employee-performance monitoring is not a minimum field. Raw deliberative conversation, protected health information, and intimate or third-party content remain outside unless a sectoral designation expressly identifies a necessity and lawful protection. Automated capture must be limited to defined events, stated purposes, authorized recipients, and a deletion rule.

The organizational record also separates report from decision. A good-faith risk report records a signal, not an admission by the enterprise. The response record identifies who reviewed it, what information was available, and what action followed. Protected escalation supports candor; the merits firewall prevents the report's existence from becoming automatic breach. Periodic sampling tests whether the record resolves an event without converting continuous worker observation into the measure of compliance. These specifications make minimization part of observability rather than a promise added after collection.

F. Accurate Records Require Protected Escalation

A reliable record duty depends on candid reporting by the people closest to a risk. A worker who, in good faith and on an objectively reasonable basis, documents a designated risk, uses the authorized escalation channel, and preserves evidence should receive the anti-retaliation protection and defense or indemnification specified by governing law. The protection attaches to the report and authorized conduct. Intentional harm, knowing falsification or destruction, concealment, retaliation, corrupted evaluation, and unauthorized removal of a safeguard remain outside.

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[57] See Chappidi et al., supra note 16, at 554–56, 559–64.

This allocation aligns information with authority. A safety engineer may understand a failure mode without controlling release; a product manager may control schedule without receiving the signal; an operating professional may see an abnormal output without the evaluation history. The record shows what moved between them, when it moved, and who could act. Protecting documented escalation makes the record reliable, while separate treatment of the organizational response prevents every report from becoming a merits admission.

Existing compliance and whistleblower regimes confirm the institutional principle while supplying different scopes and remedies. The Organizational Sentencing Guidelines treat leadership responsibility, adequate authority and resources, reporting without fear of retaliation, enforcement, response, and periodic risk assessment as components of an effective program.[58] Sectoral statutes protect specified reports and refusals under defined causation and remedy standards.[59] A front-door enactment should state its own scope rather than import every privilege or immunity from those regimes.

G. The Record Is Also a Defense Asset

The front door is an information rule, and information can defeat a claim. A version record can show that the challenged feature was inactive. A configuration log can show that an independent deployer supplied the tool or removed a safeguard. An incident sequence can show that a warning appeared, an intervention fired, or a user edited the relevant content. Evaluation and approval records can show that the enterprise tested the asserted risk, adopted a response supported by the information then available, and monitored operation. A stop record can show that an actor lacked the practical authority the claimant alleges.

This defense value is especially important for stochastic systems. "The model can be unpredictable" states a general property. A record can show whether the particular event fell within an evaluated range, which controls were active, which feedback arrived, and whether the proposed alternative would have changed the sequence. It permits a defendant to establish reasonable preparation, intervening modification, user circumvention, or unavoidable residual risk with evidence rather than a category label.

The record also disciplines historical claims. Research published af-

[58] See U.S. Sent'g Guidelines Manual § 8B2.1(b)(2), (b)(2)(C), (b)(5)(C), (b)(6)–(7), (c) (U.S. Sent'g Comm'n 2025).

[59] See, e.g., Energy Reorganization Act Employee Protection Provision, 42 U.S.C. § 5851(a)(1)–(2), (b)(2)(B), (b)(3)–(4) (2024); *Whirlpool Corp. v. Marshall,* 445 U.S. 1, 9–13 (1980).

ter an event may identify a variable worth testing without proving what a defendant knew earlier. A mitigation developed later may show a technically describable control without establishing that it was feasible, required, or admissible for the earlier deployment.[60] Versioned evaluations, resource decisions, complaints, and contemporaneous alternatives locate the inquiry at the correct time.

The infrastructure therefore serves both sides of the core proposition. It prevents a claimant from losing because the relevant deployment was invisible. It prevents an enterprise from losing because a court must infer a deployment from a frightening output alone. The front door makes the record reachable; the record allows ordinary law to distinguish the two.

VI. The Merits Firewall and Administrable Boundaries

The front door is an access right with a defined stopping point. It begins only with an adverse event affecting a legislatively specified interest, supplies a closed first answer, and expands only upon a claim-specific showing. It changes no element of the underlying cause of action. Four boundaries make that allocation durable: existing law defines the protected interest; constitutional and confidentiality rules shape disclosure; arbitration, territorial limits, and federal preemption govern the enforcing forum; and product or speech classification remains for the merits.

A. Existing Legal Interests Define the Gate

The designation identifies the legal interests that justify compulsory observability. Employment opportunity, credit, housing, public benefits, health, education, physical safety, and the welfare of minors already receive legal protection in defined settings. A legislature can select a deployment category in which affected people predictably lack identity and event facts needed to invoke that protection. Capability, marketing, or dissatisfaction alone never opens the front door.

Stage One therefore requires an adverse event affecting an interest protected by the law named in the designation. It does not require the affected person to plead a complete underlying cause of action before receiving fields that the operator alone possesses. Nor does it create a freestanding right to audit a business. A rejected applicant identifies the job, adverse disposition, covered screening process, and event fields. A benefits recipient identifies the entitlement, challenged action, and covered calculation. A companion-service user identifies the covered interaction

[60] See Fed. R. Evid. 407.

and protected interest. A preference for another model, a demand for human conversation, or an assertion that an output felt wrong does not qualify.

That gate preserves the heterogeneity of AI disputes. Some AI-associated losses have no private remedy; others sound in contract, tort, antidiscrimination, administrative, consumer-protection, or no-liability rules.[61] The first answer locates the event within the applicable law. If the designated interest, enforcement route, or requested field falls outside the statute, the access action ends. If a pure legal defense—jurisdiction, immunity, express preemption, no private right, or a limitations bar apparent from the notice—disposes of the statutory access claim, the tribunal can decide it before Stage Two.

Once the first answer identifies the deployment and custodian, the allocation established in Section C applies on better factual predicates. Rule 8 governs any federal complaint; Rules 26, 34, and 45 govern claim-specific production; Rule 15 governs amendment. The statute creates the object and fixed access entitlement that those rules do not create. It does not supply an AI-specific standard of care, causation rule, product classification, or damages measure.

The legal-interest gate also limits cost. The operator bears ordinary expense for the local manifest and first answer because observability is a condition of covered operation. Extraordinary formatting or an expert protocol can be allocated under the designation and forum law. An incomplete or evasive answer shifts the reasonable expense it causes. An enterprise outside the prima facie control lane exits after Stage One. Those rules make the information right usable without turning every covered deployment into continuing public discovery.

B. Constitutional, Trade-Secret, and Privacy Protections Shape Access

A compelled answer must satisfy the Constitution as well as the model statute. The minimum answer is transaction linked and principally factual: what system and version ran, which enterprise holds the record, what output or notice occurred, and which role possessed listed authority. It is delivered to the affected person or enforcing tribunal rather than published to the world. Those features distinguish the first answer from compelled ideological speech or a requirement that an enterprise confess legal fault.

The governing First Amendment standard depends on the speaker, content, and regulatory setting. *Zauderer* permits certain compelled dis-

[61] See Henderson, supra note 2, at 483, 515–17.

closures of purely factual and uncontroversial commercial information reasonably related to preventing deception; *NIFLA* rejects an unlimited category of "professional speech" and requires courts to examine burdens and fit.[62] A designation should therefore require operational facts, use neutral field definitions, and avoid compelled normative characterizations such as "unsafe," "biased," or "responsible." If a sector or requested field falls outside the commercial-disclosure line, the ordinary level of constitutional scrutiny governs. The statute's closed fields and nonpublic protections narrow the burden; they do not predetermine the constitutional result.

Trade secrets receive protection, not categorical exclusion. Trade-secret interests can constitute property and turn on reasonable expectations of confidentiality, while litigation law has long used protective orders to limit disclosure of confidential commercial material.[63] Stage One does not require source code, weights, or unrestricted training data. It asks for identity, version, event, custodian, and control fields. Those deeper materials may be considered only at Stage Two upon necessity and proportionality, with redaction, attorneys'-eyes-only access, secure expert review, in camera inspection, and testing protocols available. A withholding party identifies the record, custodian, date, version, and legal basis so that protection does not become invisibility.

Privilege follows the same line developed in Section iii. Legal advice and attorney work product remain protected. The operator produces underlying nonprivileged facts and ordinary-course business records and logs protected material with sufficient specificity for review. The Act creates no privilege exception and no rule that counsel's involvement automatically removes an operational fact from the minimum record.

Privacy and security limit both creation and production. Part IV's separate clocks and event schema keep unrelated users, raw conversations, worker surveillance, protected health information, credentials, and security details outside the manifest by default. A request uses the narrowest available event identifier, time window, feature, and population. Pseudonymization, aggregation, secure review, and in camera testing can establish that a control existed without exposing the control itself. A timely field-specific objection pauses only the contested protected field and permits prompt neutral review before disclosure or penalty; uncon-

[62] See *Zauderer v. Off. of Disciplinary Couns. of the Sup. Ct. of Ohio,* 471 U.S. 626, 650–53 (1985); *Nat'l Inst. of Fam. & Life Advocs. v. Becerra,* 585 U.S. 755, 768–79 (2018).

[63] See *Ruckelshaus v. Monsanto Co.,* 467 U.S. 986, 1001–14 (1984); Fed. R. Civ. P. 26(c)(1)(G).

tested identity and event fields remain due.[64] The constitutional and confidentiality boundary is therefore affirmative: define the factual minimum, minimize collection, and use protected access for what remains.

C. Arbitration, Territorial Limits, and Federal Preemption Govern the Forum

Nonwaiver describes the substantive duty, not an exclusive judicial forum. An operator cannot contract away the affected person's right to the minimum record. But a valid arbitration agreement may govern who enforces that right. For a federal statutory right, a contrary congressional command can displace the Federal Arbitration Act's rule of arbitrability. A state model act cannot single out arbitration agreements for disfavored treatment; it should make the duty nonwaivable while allowing an otherwise valid agreement to select the private enforcement forum.[65] Questions about whether the parties delegated arbitrability follow federal arbitration doctrine.[66]

The duty still arises before the merits forum needs discovery. A covered operator must maintain the local record and answer a qualifying request on the statutory timetable; completion is not a condition precedent to commencing or continuing arbitration. If it disputes enforceability or scope, the proper court or arbitrator resolves that dispute under the agreement and the Federal Arbitration Act. An agreement to which the administering agency is not a party does not eliminate public enforcement brought in the agency's own name.[67] This allocation preserves the substantive right, the selected private forum, and independent public enforcement.

The local record is especially important because arbitral process may not reach an upstream stranger. Federal Arbitration Act section 7 authorizes arbitrators to summon a person to attend and bring documents; the Ninth Circuit reads it not to authorize a stand-alone prehearing document subpoena to a nonparty.[68] The operator's predeployment retrieval right supplies the defined vendor fields without enlarging arbitral subpoena power. A supplier that is itself bound by the Act or an arbitra-

[64] Cf. *City of L.A. v. Patel,* 576 U.S. 409, 418–23 (2015) (requiring an opportunity for neutral precompliance review before penalized administrative inspection). A private first-answer request is not the hotel-inspection regime at issue in *Patel*; the case supplies a protective design principle rather than the governing standard.

[65] See *CompuCredit Corp. v. Greenwood,* 565 U.S. 95, 98–104 (2012); *Kindred Nursing Ctrs. L.P. v. Clark,* 581 U.S. 246, 251–58 (2017); *Preston v. Ferrer,* 552 U.S. 346, 359–63 (2008).

[66] See *First Options of Chi., Inc. v. Kaplan,* 514 U.S. 938, 943–47 (1995).

[67] See *Equal Emp't Opportunity Comm'n v. Waffle House, Inc.,* 534 U.S. 279, 288–96 (2002).

[68] See Federal Arbitration Act, 9 U.S.C. § 7 (2024); *CVS Health Corp. v. Vividus, LLC,* 878 F.3d 703, 706–09 (9th Cir. 2017).

tion agreement answers on that source of authority; another supplier responds through the operator's contract.

Territorial limits remain equally concrete. The State's authority to apply its substantive law, a tribunal's personal jurisdiction, and valid service are separate predicates. Operator notice supplies none of them. A control holder receives a direct statutory duty only when the enterprise and identified deployment fall within valid territorial and choice-of-law reach; coercive relief additionally requires service and an independent jurisdictional basis.[69] Appointment of the operator's response agent authorizes the statutory delivery route only. It should not silently become consent to all-purpose jurisdiction; an express registration-based consent regime raises the distinct questions illustrated by *Mallory*.[70] The domestic visible operator nevertheless owes the local manifest, event receipt, and contractual retrieval path. That nondelegable local architecture keeps the answer reachable without pretending that state process reaches every global node.

Sectoral designation must also perform a substantive federal-preemption check provision by provision. FCRA expressly preempts specified state requirements concerning dispute procedures, adverse-action duties, and furnisher responsibilities; its present agency interpretation replaced the Bureau's withdrawn 2022 narrow-preemption view, while recognizing that courts remain the final arbiters.[71] ERISA can displace state reporting regimes that intrude on nationally uniform plan administration. Federal medical-device law preempts some requirements different from or additional to federal requirements, while the HIPAA rules preserve specified more-stringent state privacy provisions and forbid contrary disclosure commands.[72] Employment law supplies a different savings rule.[73] A designation should identify federal actors and exclusive remedies, whether federal law supplies a floor, ceiling, or parallel-duty path, which actors and fields are excluded, how remedies overlap, and which claims the State may toll. A generic savings clause cannot preserve an application federal law forecloses. Congress can use the same front-door architecture when national uniformity is required.

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[69] See *Bristol-Myers Squibb*, 582 U.S. at 262–68; *Ford Motor*, 592 U.S. at 358–72.

[70] See *Mallory v. Norfolk S. Ry. Co.,* 600 U.S. 122, 134–36 (2023).

[71] See Fair Credit Reporting Act, 15 U.S.C. § 1681t(a), (b)(1)(B)–(C), (F) (2024); Fair Credit Reporting Act; Preemption of State Laws, 90 Fed. Reg. 48,710, 48,710–15 (Oct. 28, 2025). The agency document is nonbinding guidance; the statutory text controls.

[72] See Employee Retirement Income Security Act, 29 U.S.C. § 1144(a) (2024); *Gobeille v. Liberty Mut. Ins. Co.,* 577 U.S. 312, 320–26 (2016); Medical Device Amendments, 21 U.S.C. § 360k(a) (2024); *Riegel v. Medtronic, Inc.,* 552 U.S. 312, 321–30 (2008); Health Insurance Portability and Accountability Act, 42 U.S.C. § 1320d-7(a)(2) (2024); HIPAA Privacy Rule State-Law Preemption, 45 C.F.R. §§ 160.202–.203 (2025).

[73] See Title VII of the Civil Rights Act of 1964, 42 U.S.C. § 2000e-7 (2024).

D. Classification Neutrality Preserves the Merits

The front door does not classify an AI system as a product, service, speaker, agent, or legal person. A companion application can present design questions about access, memory, engagement objectives, crisis response, and warnings while a claim directed at an adopted message presents a distinct First Amendment question. An employment score can participate in a decision without becoming a physical product. Generated text can communicate an operator's decision without making the model a juridical actor.

Garcia illustrates the separation. At Rule 12, the district court treated Character.AI as plausibly alleged to be a product because the challenged features concerned design and commercial distribution. It declined on that record to classify the generated sequence as protected speech where defendants had not identified a relevant expressive choice or speaker.[74] Those rulings were procedural and claim specific. The first answer would identify which conduct the claim challenges, which human or organizational choices the deployment implemented, what message an identified person adopted, and whether the requested remedy regulates design, transaction, decision process, or expression. Governing law then classifies the claim.

Fragmented and open architectures change the control map, not this boundary. An open-weights publisher with no continuing visibility, contractual right, or stopping power can exit after the provenance answer. A downstream modifier that selects the protected use, adds data and tools, removes safeguards, and controls operation can occupy the relevant lane. A provider that retains mandatory updates, monitoring, or remote suspension may retain another lane. Contract labels and brand association are evidence only to the extent they describe practical authority. Stage Two follows only when the Stage One record supports that the function formed part of the event path or governed a safeguard and the requested information bears non-de-minimally on an element, defense, or remedy. Duty and causation remain for the merits.

The merits firewall completes the allocation. Compliance, noncompliance, production, and front-door participation create no presumption on the enumerated merits questions. The rule supplies a record from which existing law can distinguish reasonable deployment, independent modification, residual risk, and actionable conduct. It opens adjudication without choosing its substantive winner.

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[74] See *Garcia*, 785 F. Supp. 3d at 1174–80.

VII. Conclusion

AI litigation can fail before duty, defect, discrimination, causation, immunity, or defense because system identity, version, event path, custodian, and control records remain divided among organizations. Ordinary procedure becomes powerful once the proper target and record holder are known; it cannot create those predicates after the event.

Model sectoral legislation supplies the deployment front door. A state legislature designates the covered deployment, protected interest, visible operator, minimum record, retention clock, enforcement route, and federal-law boundary; Congress can use the same architecture for national markets or federal claims. Courts administer the first answer and claim-specific Stage Two; they do not derive the ex ante duty from discovery doctrine.

Stage One begins with an adverse event affecting the specified interest, the covered deployment through which it occurred, and facts connecting closed identity and event fields to that occurrence—never with facts found only in the deployment record. The visible operator supplies an event receipt and custodian map, preserves the slice, and activates its contractual retrieval path. An enterprise remains for Stage Two only when it held risk-specific practical authority, the Stage One record supports that its function formed part of the event path or governed a safeguard, and the requested information bears non-de-minimally on an element, defense, or remedy. No different-act, prevention, or causation showing is required.

The applications show why both stages matter. *Garcia* presents a visible operator and a missing deployment record. *Mobley* presents feature identity, physical hosting, legal control, privilege, and use divided across employers and a vendor. A common event identifier, local manifest, and retrieval right make each architecture observable without treating every supplier as a defendant. The merits firewall permits early exit without altering any element or defense.

The design lets an affected person identify the operative deployment before divided custody or limitations decides the dispute. It also lets an enterprise show that a feature never ran, an output never reached the decision path, a downstream actor modified the system, a warning appeared or an intervention functioned as designed, or a proposed alternative was unavailable. Privacy minimization, privilege, trade-secret protection, arbitration doctrine, territorial limits, and federal preemption remain part of the rule.

Probabilistic output does not eliminate legal responsibility; it relocates the evidence of control. The deployment front door makes that evidence reachable before information asymmetry decides the case.